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Senate of Virginia Floor Session, Saturday, March 14, 2026

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[00:00:54] This is the Senate of Virginia, Richmond, Virginia.

[00:02:03] Chamber.

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[00:04:32] Senate of Virginia, Richmond, Virginia.

[00:05:19] Chamber.

[00:06:19] This is the Senate of Virginia, Richmond, Virginia.

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[00:10:34] This is the Senate of Virginia, Richmond, Virginia.

[00:12:15] Senate Chamber.

[00:12:40] This is the Senate of Virginia, Richmond, Virginia.

[00:14:44] Senate Chamber.

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[00:16:55] This is the Senate of Virginia, Richmond, Virginia.

[00:18:00] Senate chamber.

[00:20:39] This is the Senate of Virginia, Richmond, Virginia.

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[00:23:28] This is the Senate of Virginia, Richmond, Virginia.

[00:25:21] Chamber.

[00:27:17] This is the Senate of Virginia, Richmond, Virginia.

[00:27:26] Senate chamber.

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[00:30:40] virginia chamber the senate will come to order the senators will please take their seats those

[00:33:12] persons not entitled to the privileges of the floor will retire to the gallery the senators and All in attendance will please stand if you are able. We will be led in prayer this morning by the Reverend H. Carson Rine from the Presbytery of the James in Richmond.

[00:33:30] And following the prayer, everyone will please remain standing. We will be led in the Pledge of Allegiance this morning by Lorenzo Boyd, Facilities and Logistics Assistant from the Senate Clerk's Office. Let us pray. Creator of every good and perfect gift, We come today with grateful hearts as the Senate gathers for its final session.

[00:33:53] We thank you for your presence during this long term that was negatively impacted by difficult weather, and yet we're thankful for the opportunity these leaders have to serve their communities and the Commonwealth. Grant them wisdom as they conclude their work, integrity in every decision, and a spirit of cooperation and respect for one another.

[00:34:14] We're also grateful for being part of history in the Commonwealth, serving on the first woman governor serving on the first muslim woman elected to a statewide office in our nation as the lieutenant governor and serving on the first african-american attorney general in virginia may they as leaders steward well the privilege they have to lead and may we provide support and encouragement in their leadership help all of us to reflect on the responsibilities entrusted to us and to carry forward the lessons learned in service to others may the final actions in this chamber be guided by justice humility and desire for the common good

[00:34:53] bless each senator and their families for the sacrifices made during this time of service and as this session comes to a close grant peace clarity and unity among all who serve may all that is said and

done here this day honor the principles of truth fairness and compassion in your holy name we pray amen i pledge allegiance to the flag of the united states of america

[00:35:25] and to the republic for which it stands one nation under god indivisible with liberty and justice for

[00:35:34] all clerk will call the roll all those present please vote aye clerk will close the roll you

[00:36:34] give a quorum madam president senate journal for friday march the 13th 2026 the senator from charlottesville adamantly moves today that the reading of the journal be waived all in favor of waiving the reading of the journal will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will

[00:37:12] close the roll. Ayes 32, noes 3, rule 36-1. Ayes 32, noes 3, rule 36-1. The reading of the journal is waived. The clerk will report any communications from the House of Delegates. We do not have any, Madam President. The clerk will report any communication from the Governor. We do not have any, Madam President. We've now arrived in the time in our morning hour when we have the privilege of welcoming our distinguished guests who are joining us in the senate gallery. The chair

[00:37:50] recognizes the senior senator from Henrico. Thank you, Madam President. Madam President, I'm right for an introduction. Senator has the floor. Thank you, Madam President. We are joined in the gallery by Reverend Carson Ryan Jr. I understand. He is a native of Charlotte, North Carolina having to come to Virginia in 1980 to begin two new congregations since then he has served as interim pastor for six congregation he also

[00:38:26] serves as ad serves as served as adjunct faculty at Union Presbyterian seminary for 25 years teaching church government he is an ordained Presbyterian minister for 50 years I want to thank him for joining us take the time to stop by and join us this morning and praying with us this morning and praying for us this morning and particularly his prayer that is focused on cooperation and respect one that I believe we have done a fine job this session with but we can use

[00:39:00] that constant prayer as it relates to cooperation and respect and so I hope uh madam president you will give him the warm uh welcome of the city thank you senator for the introduction reverend ryan thank you so much for joining us on this saturday on this special saturday as we finalize uh the session the 2026 session your prayer was both meaningful and a reminder of the critical work that we do every day here in the chamber and that we are working on behalf of all of our constituents throughout virginia thank you so much for your

[00:39:36] prayer and blessing and senators i ask that we give the very warm welcome of the senate to the reverend carson ryan of richmond the chair recognizes the senator from colonial heights madam president i would ask that the record reflect that my seatmate the senator from isle of wight is away from the capitol on pressing personal business thank you senator the journal will so reflect is there any other business for the morning hour the clerk will call the calendar

[00:40:19] Senate calendar for Saturday, March the 14th, page 41, Memorial Resolution, Senate Joint Resolution 293, celebrating the life of Stephanie Nicole Mentor.

[00:41:05] The chair recognizes a senator from King George. Thank you, Madam President. I move the resolution pass in speaking to that. Senator has the floor. Thank you, Madam President. This is the young

mother that needlessly lost her life in Fairfax at the bus stop. She was a constituent of mine and I very much appreciate all of you all signing on to this resolution. I know that the family will appreciate this a great deal. Thank you, Senator. All those in favor of

[00:41:39] of agreeing to Memorial Resolution SJR 293 will please rise. The resolution is agreed to.

[00:42:00] The Senate will now be at ease.

[01:02:36] On page 18, conference committee report on House Bill 1393. The senior senator from Fairfax.

[01:02:54] Thank you, Madam President. I rise to move a request for a second committee Conference on House Bill 1393. The question is, shall the Senate request a second Committee of Conference on House Bill 1393? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The

[01:03:30] clerk will close the roll. Ayes 38, no 0. Ayes 38, no 0. The Senate requests a second Committee of Conference. Conferes on the part of the Senate on House Bill 1393 is named by the Chair of Commerce and Labor, Senator Deeds, or Senators Marsden, Serenny Vassen, and Stewart. Page 2, House Bill 110, Conference Committee

[01:04:08] report. The senior senator from Fairfax. Thank you, Madam President. I move that the conference committee report on House Bill 110 be concurred with. And speaking to that... Senator has the floor. Thank you, Madam President. This is a bill that is identical now to the Senate Bill 496 that was passed out of this chamber. And this House bill makes it unlawful to leave handguns in unattended vehicles unless locked with inside the vehicle. The bill is much like it was when it left this chamber, but there are two differences in the conference report.

[01:04:45] One is we've excluded private property so that no one can come on to your private property or driveway or what have you to hold you accountable for how your vehicle is locked or the gun is left in it. And the second thing is that we have an exemption for General Assembly members parking in the Capitol Square garage, which otherwise prohibits firearm storage.

[01:05:07] the House wanted to put that exemption in and with that I reiterate my motion that the conference committee be agreed to. The senior senator from Virginia Beach. Thank you Madam President. Will the gentleman rise for a question? Will the senator yield? I yield. Senator from Virginia Beach. Thank you Madam President. Madam President I asked the gentleman just a quick question. If I were driving on the road and I had a firearm in my vehicle and I pulled into a rest area and went in to use the restroom but I didn't have an approved container to

[01:05:43] lock it in my vehicle but our other law says that I can't bring it into a rest stop rest area restroom what would I do with the vehicle what would I do with a handgun senator from Fairfax madam president I believe the gentleman would be able to lock that in a glove compartment or in a center console while he went inside to use the facilities.

[01:06:24] Madam President, would the gentleman yield for one additional question? Senator from Fairfax, will you yield? I yield. Senator from Virginia Beach. Madam President, I asked the gentleman under this conference report, are there any special type of compartments that are not provided in a standard manufactured vehicle that would require a different type of container. So in other words, can I

just purchase a car, your average Toyota Camry, and lock it into that without any special container, device, or lock? Senator from Fairfax.

[01:07:03] Thank you, Madam President. No, you would require to have a locking device for your center console your glove compartment or there are separate hard surface containers that can be permanently affixed to the vehicle either by bolting it welding it or attaching it with steel cable as long as it's out of sight so those would be your three options as to how to do that that president I thank the gentleman and speaking to the bill when appropriate senator has the floor madam president basically what this bill does now in the conference report it says that if you were driving down the road in a rental car, or if you're driving down the road

[01:07:43] in a car you just purchased, and you were carrying concealed, and you had to go into a public rest area, that you would not be able to go into that public rest area without breaking the law.

[01:07:58] You wouldn't be able to leave your weapon in the car unless you had it specifically modified without breaking the law. So there's no real place that you can use the restroom if you're driving on the streets of, or the roads of Virginia, if you didn't have this vehicle specially modified with one of these locking containers or devices.

[01:08:21] So Madam President, I think this bill still needs a lot of work and I would hope that we would continue to work on it during the process or we would carry it over until next year because clearly it's not ready for prime time. Thank you.

[01:08:38] The chair recognizes the senator from Colonial Heights. Thank you, Madam President. Speaking briefly to the bill. Senator has the floor. Madam President, we've discussed this bill many times over several sessions, and the takeaway is that this is a bill that criminalizes the victim of a crime.

[01:08:56] It makes it illegal for someone to have had a gun in the car if they are the victim of a robbery of that gun from the car bad policy and we've discussed that ad nauseam what this conference committee report does is adds a new exception that I don't think we have seen yet so far and it specifically exempts members of the General Assembly who are parking in the parking deck and so think about this we're telling average everyday Virginians that they are going to be criminals if they are the victim of a robbery and have

[01:09:34] their legally owned firearms stolen from their vehicle, but if one of us or somebody from down the hall has a gun in their car in the General Assembly parking garage and it gets robbed from their car there, they're exempt, they're not going to be held criminally liable.

[01:09:55] And so this is a rules for thee but not for me piece of legislation, and for that reason alone, in addition to being a bad policy overall, I'd urge the body to vote no. Senator from Rockingham.

[01:10:12] As Madam President, I ask if the senior senator from Fairfax would yield for a question or two. Will the senator yield? I yield. Senator from Rockingham has the floor. So Madam President, what I would ask the senator, my understanding from his testimony earlier statement earlier in response to the senior center from Virginia Beach is that it would be illegal to leave your firearm in your car if you're at a rest

[01:10:45] area how about if you stop at a well am I correct that private property is exempt that is correct so while I can't do it leave my firearm or somebody can't leave their firearm in their car to rest area they could leave it in their car at a bucky's or sheets because that's private property is that right senator from

fairfax no the way the bill is is madam president i yield and to answer the gentleman's question uh that would be uh parking

[01:11:24] that is available to the public and not your private property and uh and if i if i may expand senator has a floor is that the the issue around the exemption for general assembly members is that many members use that garage much as they would their residential driveway by leaving their car there going to the marriott going to the hilton going to the omni the commonwealth and what have you so we do not want to handicap members in terms of being able to park their vehicles just as if if they were owned a home here in Richmond or were renting a home here in Richmond.

[01:11:59] And the House felt that that was an appropriate position to take. Madam President, further question? Will the Senator yield? I yield. Senator has the floor. Madam President, I would ask the Senator, there are many folks who interact with us every day here in the General Assembly who travel to Richmond lobby for bills who likewise stay in hotels but they don't have the privilege of staying in the parking in the General Assembly parking deck what

[01:12:36] makes us so special that we're going to grant this special unique exception for General Assembly members parking in that parking deck but not to you know other citizens with similar circumstances senator from Fairfax thank you madam president I believe the Senate senator from Eastern Fairfax would like to weigh in the chair recognizes the senator from Eastern Fairfax I'd like to know about the telescope telescoping sites and thingamajigs senator from

[01:13:16] Fairfax thank you madam president a couple things I just want to point out about this. First of all, as to the Senator from Rock Am's question, I don't know about the other people in this room, but doing this job got a lot more risky in the last two years. Speaker of Minnesota got assassinated. Her husband got murdered. And we have been under threat as legislators around the country. And it's caused me to think about buying a gun for the first time

[01:13:52] in my life. I don't own one now, but it's caused me to think about it. And when some members told me that they're worried and that they feel the need to carry. It seems to me that if you wanted to target one of us, the best place to hang out would be by that garage, because you know you're in and out of that garage every day. And so I thought that for people that want to protect themselves, it was actually a good exception, and that's what makes us a little bit different from other people, number one. Number two, I just want to point out that this does not make

[01:14:27] the victim a criminal, because if I'm not mistaken, the bill has language in it that says if your gun is stolen in your vehicle and you report it to the police, you can't be charged. So you become a victim if you choose not to tell anybody you had one of the 2,000 guns a year that got stolen. But if you don't want to tell the police about it and your gun is getting used later, that's when you might have the problem.

[01:14:54] Madam president from Rockingham, I would ask the senator from Eastern Fairfax Senator from Fairfax. Will you yield for a question? Sure. Senator from Rockingham. Madam President Well, I appreciate the senator's concerns for his safety and His inclination to go out and buy a gun for the first time

[01:15:24] What makes us, as members of the General Assembly, more vulnerable than women riding a bus in Charlotte or waiting at a bus stop in northern Virginia? Why shouldn't we provide them with the same ability to protect themselves that we're affording to ourselves?

[01:15:46] Senator from Fairfax. Madam President, I have no idea what those scenarios have to do with this bill. This bill has to do with guns that are left in parked cars. That's it. Guns in parked cars. It says guns in parked cars. None of those scenarios involve people in parked cars. And if somebody wants to have their gun in a parked car, there's plenty of places to park your car, just leave it locked up in your glove box. And if it gets stolen, report it to the police. Then you won't have a problem. That's what the bill says.

[01:16:20] Madam President, speaking to the bill. Senator has the floor. Madam President, while this bill is dealing with guns in parked cars, it deals with more than that. It deals with double standards that we are applying to people all over Virginia, yet we are unwilling to apply those same standards to ourselves.

[01:16:45] We understand we live in a dangerous time. There are people out there all over Virginia who have dangerous jobs, who place themselves in harm's way. People who are threatened by spouses or domestic abusers, people whose families and children are at risk, and we tell them that we're going to put limits on their ability to do things.

[01:17:11] But, you know, in this bill, we're cutting ourselves out and making a special class once again for members of the General Assembly.

[01:17:23] I appreciate that, but I think the men and women, families, people across the Commonwealth of Virginia would appreciate being treated in exactly the same way that we're treated and would appreciate some kind of acknowledgement that they have legitimate reasons for carrying a firearm in their car and ought to be afforded the same kinds of exemptions that we're carving out for ourselves.

[01:17:53] while we're parked in the parking garage on 9th Street. Senator from King George. Speaking to the conference report. Senator has the floor. Feeling a little bit like the Senator from Lynchburg.

[01:18:09] Madam President, I wish the Senator from Eastern Fairfax could hear himself. Could hear himself. Because this job, we think this job has gotten dangerous in the last couple of years. Well, how many Virginians out there believe that they're in a situation where they need protect themselves but yet we don't listen to them well not me but this body's not gonna listen to them because they think they need to have this protection we're gonna carve something out for general men of some assembly

[01:18:44] members that to me is beyond the pale general assembly we are a citizen legislature we are citizens just like everybody else we go back home we We interact with their constituents.

[01:19:00] We're a part of the community. We are no better than anybody else. And we should never vote for a bill that gives us a special privilege over any other citizen.

[01:19:15] Senator from Western Fairfax. Thank you, Madam President. I rise to speak to the bill briefly. Senator has the floor. Madam President, I will say I actually agree with my colleagues on the other side.

[01:19:31] I don't like this exemption. I'm going to vote because I think the underlying bill is correct, and I hope we'll come back next year and fix it. I do not agree that we need to be exempted. Thank you. Senior Senator from Fairfax.

[01:19:49] Thank you, Madam President. If I could speak, if no one else wishes to. The Senator has the floor. you i think we missed the explanation here is the reason for the exemption is the fact that you know we've excluded private property where people live uh because we don't want people going on and and trying to find uh misdemeanors at their uh at their residences and what have you so it's all about streets

and and openly publicly available parking at shopping centers and gas stations what you know whatever uh you know where people are going to park but here it's unique

[01:20:21] It's a unique situation because I've used our parking garage as my residential garage while staying at a nearby facility. So I don't have to pay the parking fees at that facility. So it's just like the private property exemption, except for members in the unusual situation here, that that becomes our residence, our residential parking for nearby hotels who may or may not have parking space for us, who may charge for it.

[01:20:48] but many members do leave. I've left my car in that garage sometimes for weeks at a time because I've stayed at Miller and Rhodes and I'm walking back and forth and what have you. So it's the same thing as my driveway at home. That is the difference and that's why the folks in the house felt that we needed this exemption for us because of the unique circumstance of us living here for such a long period of time and leaving our cars in that garage. So that was the reason the House came up with it. Doesn't cover all situations, but at this time, it is, I think, essential to the bill.

[01:21:21] Senator from King George. Would the senator yield for a question? Will the senator from Fairfax yield? I yield. Senator from King George. I've known the senator from Fairfax for a while now, and I know he's been working on this issue, but I would ask the senator. Why does he believe it's a good idea to leave a gun in a car for weeks at a time unattended? I think that's what he just said.

[01:21:44] Senator from Fairfax. Madam Chair, all I said was I've left my car here. I do not have a gun. Do not put a gun in a car. Leaving a gun in the car is the most foolish thing I think you can do, given the statistics here in this state of a thousand guns a year in the Richmond area being taken out of these cars, a thousand a year in Hampton Roads area, about 400 a year between Lynchburg and Danville in that area. The Citizens Defense League have said our cars have become shopping carts for, you know, for people to get illegal guns and they're going into the wrong hands. Mostly young people who either sell them or use

[01:22:23] them. And to show you the change in statistics, and I've mentioned this on the floor before, the Richmond Juvenile Detention Center, 82% of the youth that were there two months ago when I visited, 82% were there on gun charges. These guns are coming out of cars. That's where they're coming from. They don't come out of residences anymore. This is the way that illegal guns are used, are taken out in our community and it ruins lives, the people who are the victims of gun violence and the very young people who foolishly use them inappropriately and end up with life sentences in prison. So this is a way of stopping the flow of

[01:22:58] guns into the community and yes, it's a little awkward because of the, you know, the nature of the General Assembly, but we're here in a different capacity than people are at a regular parking garage. This is our residential parking and the House felt that that was was critical. It was not in my original bill but I think they're right and I would ask that we we concur with the conference report.

[01:23:21] Senator, you were the final speaker but now we have two additional speakers. The chair recognizes the senator from Roanoke. Thank you Madam President. Speaking briefly to the bill. Senator has the floor. Thank you Madam President. no one should leave something valuable in their vehicle.

[01:23:39] That's common sense. You definitely should not leave a firearm in a vehicle unattended. This conference report, though, is so offensive that it treats us different than every other Virginian. And it says that because we got elected, somehow we're gonna be allowed to leave our firearm here.

[01:24:02] The people that work for us, that come from all over the state, travel just as far and park in a parking garage two blocks away aren't exempted by this. This is outrageous. I can't believe this we're going to treat us different than we treat the clerk staff, than we treat the General Assembly staff. It's just outrageous. We should not pass this. Senator from Eastern Fairfax. Madam President, I just spoke goodbye temporarily. Without objection. Madam President. Senator from Eastern Fairfax. Well, I got another motion after that. Can I complete this

[01:24:37] motion first. Without objection, House Bill 110 goes by temporarily. Senator from Fairfax. Thank you, Madam President. I would move that as the House Bill 110 for a second conference committee, committee conference. President. Senator from Rockingham. I would ask if the Senator from Eastern Fairfax would yield for a question. Will the Senator yield? I'll yield. I'm not sure it's debatable, but I'll yield. Senator from Rockingham. Madam President, did I misunderstand that there was a deadline of 12 o'clock noon for conference committee reports to be turned in

[01:25:17] senator from fairfax uh madam president i would tell the senator yeah it was an aspirational deadline we there were some problems with this with the sentencing commission that refused that they couldn't issue uh reports or uh woodrum impacts for about two hours which delayed a bunch of reports uh and uh the house was going in at noon we were hoping to have more noons we all knew we were doing for the next two hours. Madam President. Senator from Rockingham. Further question. Will the senator yield? Tell you. Senator from Rockingham. I heard the senator from Eastern Fairfax characterize that as an

[01:25:53] aspirational deadline. Does that mean it's good for thee but not for me? Senator from Fairfax. Madam President it's good for lots of people and everybody. I think we just saw another conference committee report motion made just a moment ago so there's clearly going to be other conference reports they're in the works we have a motion on the table for a second conference committee report the question is

[01:26:28] shall the senate senator from battetat parliamentary inquiry senator has the floor if we've got a conference report before us that was signed by all the members of the conference committee or sufficient enough is it proper to without having a vote on that conference report to call for a second committee of conference since the conference committee has actually turned one in? Senator, it is a proper motion Senator.

[01:26:57] The motion on the floor, the motion on the floor is a request for a second Senator from Rockingham. Parliamentary inquiry. Senator has the floor. Madam President, was there not a motion on the floor to adopt the conference report? Then then a motion was made to take it by temporarily and now we have a second motion to request a second conference committee report. The

[01:27:32] motion is properly in front of us. Senator from King George. If the conference committee report has already passed the House, how do we ask for a second conference committee report? The Senate has not yet passed the conference committee report. The Senate has the opportunity to request a second conference committee report. The motion is properly in front of us. The question is, shall the Senate request a second conference committee report for House Bill 110? All in favor

[01:28:12] of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[01:28:30] Ayes 20, noes 18. Ayes 20, noes 18. The Senate request a second conference committee report on House Bill 110. Comfries on the part of the Senate is named by the Chair of Courts of Justice, Senator Cerevelle, or Senators Marsden, Cerevelle, and Obenshine. Page 3, House Bill 140. Senator from Hanover. Madam President, with the

[01:29:09] hope that this will not garner as much excited debate, I move that HB 140 conference committee report be agreed to. The question is, shall the conference Committee report. Senator will speak to the motion. Thank you, Madam President. Madam President, I don't think anybody's been treated differently in this bill. It does deal with the deadline and the name of the Commission for Federally Recognized Tribes. It is changing the name as

[01:29:45] we did in the Senate, and this conference report does extend the deadline, but it takes the Senate position of extending the deadline to 2027 just one year the question is shall the senate adopt the conference committee report for house bill 140 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators

[01:30:15] desire to change their vote the clerk will close the roll ayes 39 no zero ayes 39 no zero the The Senate adopts the conference committee report for House Bill 140. Page 3, House Bill 145.

[01:30:33] The senior senator from Prince William. Thank you, Madam President. Move the adoption of the conference committee report and speaking to the motion. Senator has the floor. Thank you, Madam President. This is identical to the former senator, Senator Ebbins' bill that we passed last night on fantasy providers, paying their fair share in taxation of 10%, again, the 2.5 to problem gaming and the 2.6% fee for lottery and again it moves it the entire fantasy structure again it's just the apps that have player to person-to-person betting in the fantasy realm and again this is about the companies that have those

[01:31:12] platform apps of paying their fair share at a 10% tax thank you the senator from Hanover thank you madam president rising to speak to the motion senator has the floor. Madam President, we were here late last night and talked about a lot, but I just want to summarize a little bit with this bill. We've passed legislation this year that will tax all firearms and ammunition. We've passed legislation that will tax all employees in Virginia who are working except state employees. We've passed legislation that will tax sleep with the mattress

[01:31:50] tax and now madam president this bill is going to tax fun where will the taxing stop the senior senator from Prince William if no one else wishes to speak so far no one else wishes to speak senator draw some folks out speaking senator senator has the floor new emerging debate that is erupted over the fantasy sports we had a pretty good at compassion speeches last night I thought on a bipartisan basis about I don't know having big companies pay their fair

[01:32:29] share in this space they pay zero zero they're not paying any any fair share and so it's a little maybe a little bit different perspective after folks went to bed last night and woke up with a new perspective but this is where we're at it's about fair share and some of the big companies also helping to contribute which actually keeps our taxes lower on our citizens because those big companies contribute now under this bill which they're not doing today thank you madam president

[01:33:03] The question is, shall the Senate adopt the conference committee report for House Bill 145? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted?

[01:33:19] Do any senators desire to change their vote? The clerk will close the roll. Ayes 26, noes 13. Ayes 26, noes 13. The Senate adopts the conference committee report.

[01:33:35] Page 3, House Bill 153. the senator from Western East Western Prince William think man president men president I move adoption of the conference committee report and speaking to emotion senator has the floor all right man president HB 153 this goes back to what the conference reading report does is this puts back to the original introduced version of the house version of the bill which is the same version of the bill that the former senator from Alexandria introduced earlier this year which is the same thing that was the Senate Finance an Appropriations Committee amendment to my bill before I did the floor amendment that also included industrial zoning. So what this does, number one, it

[01:34:15] removes the industrial zoning part because that is an ongoing, well we'll just politely say debate that I have to continue having down the hall. Number two on it, so what this does is it now says provides that prior to any approval of a rezoning application, specialty exception application, or special use permit at the siting of a new high-energy use facility as fighting the bill, locality shall require that an applicant perform and submit a site assessment to examine the sound profile of the HEUF on residential units and schools located within 500 feet of the HEUF property boundary, and then it gives localities five things that they are also able to consider when making their decisions on this stuff.

[01:34:51] Now, to help refresh everyone's memory, last year, because this is identical language to the bill that got out of here last year and then was vetoed, the former senator from Alexandria's bill, got out of here on a 26th, 13 to one vote. And the cognate for that one, we had four people who weren't voting that day, but same people. So if you are on this side of the aisle and you're the center from Charlottesville, you voted yes last year. If you're on the other side of the aisle and your last name begins with the letter S, one, two, three, four, you voted for this.

[01:35:28] If you are on the other side of the aisle and you have in the last year chaired a statewide party committee you voted yes and and met a president if you typically abstain on data center votes you abstained on this vote so I hope that brings some clarity and with that I renew passage of the report and then by the way met a president we're gonna have to do this again when my companion version comes back up I the chair recognizes the senator from Colonial Heights president

[01:36:08] would the name begins with an S with the senator from Western Prince William for a question as I understood Madam President as I understood the explanation of the conference committee report it's taking it back to what Senator Evans bill was and so am I correct that that this is only going to apply to the I think it was the very large hyperscale data centers as opposed to smaller data centers. So yeah so madam president I would I would tell the

[01:36:43] senator on this that this is going to be anything that falls within that HEUF definition that high energy use facility a definition so yes because it's gonna be those larger ones but that's basically madam president what the modern data center is as opposed to say the ones that were coming online like pre-AI and sort of stuff. That said, Madam President, I think that the center and I actually agree that we should strengthen this and we should continue doing everything under the sun to do that and at the same time we're at a place right now where it's just like this is the thing that's got the vote

[01:37:19] and I want to do something that's constructive and at the same time I don't want this at all to be the ceiling. To me, this is the bare minimum of what a floor can start to be. Thank you, Madam President. I associate my comments with the senator for Western, Prince William. Thank you, Madam President. The

question is, shall the Senate adopt the conference committee report for House Bill 153? All in favor of that motion will record their votes. Aye. Those opposed, no. Are the senators ready to vote?

[01:37:49] Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 29, noes 10.

[01:38:06] Ayes 29, noes 10. The Senate adopts the conference committee report. Page 4, House Bill 173.

[01:38:21] Senator from Eastern, Prince William. Thank you, Madam President. Madam President, I would yield to the Senator from Norfolk. The Senator from Norfolk. Thank you, Madam President. madam president i move that the conference for the conference report for senate for house bill 173 be agreed to and speaking to the report the senator has the floor thank you madam president house bill 173's conference report establishes clear standards to ensure meaningful opportunities for in-person visitation at state correctional facilities while maintaining safety and security it requires the department of corrections to make reasonable efforts to provide visitation

[01:38:59] opportunities sets a minimum two-hour visit when feasible and provides extended access for long distance visitors and permits hand-holding during visits the conference report also establishes transparent procedures for suspending visitation privileges and ensures notice and appeal rights finally it directs the department to convene a stakeholder work group to develop recommendations to strengthen family visitation and restore visitation access to pre-pandemic levels.

[01:39:32] I hope everyone, Madam President, is paying attention because I'm going to have these same remarks from my Senate Bill 276. And this conference report was put together with considerable input from the Department of Corrections to help us to enshrine the things that we can do and work on the things that we have that are aspirational to do. So with that, move that we agree to the conference report. Senator from Rockingham. I'm president with the senator from Norfolk yield for a question. Will the senator yield for a question? Yes I yield. Senator from Rockingham. Madam President what I

[01:40:09] would ask is I appreciate the description of the bill but I wonder whether the senator would tell us the primary change from the bill as it left Senate with a pretty overwhelming vote how did it what does the conference report change senator from Norfolk thank you madam president as the bill left the Senate it was simply a workgroup and we worked with DOC in order to codify some things that they felt like they could do as I outlined in my remarks without

[01:40:41] incurring any fiscal expense and and keep the workgroup in place senator from from Rockingham. Madam President, I'm trying to play and catch up. I'd ask if the Senator would yield for another question. Senator, will you yield? Yes. Senator from Rockingham.

[01:40:59] I'm looking at lines 29 through 30 and I take it that this is new language in here. Visitation privileges may be suspended only for conduct that occurs during visitation that presents direct and substantial threat to the physical safety of participants or the security of the facility. Am I correct that that is new language in this bill?

[01:41:30] Senator from Norfolk? Madam President that would be correct with the again guidance from DOC. Madam President I would ask further a further question. Will the Senator yield? Yes Madam President. Senator from Rockingham. So Madam president if an inmate repeatedly and in direct violation of rules and instructions deliberately violates policy of the Department of Correction in

[01:42:05] conjunction with visitation am I correct that their privileges visitation privileges may not be suspended unless physical safety is threatened.

[01:42:21] Senator from Norfolk. Madam President what I would say to the gentleman is that that would be something that would left would be left to the Department of Corrections to interpret at the time of the incident if there were occurring incidents that violated policy then violating policy. Policy is put in place with the primary goal of the safety and security of the facility so if you violate policy then you are in fact violating what keeps the power what keeps the facility safe and intact madam president speaking the bill senator has

[01:43:00] the floor man president I I'd like this bill as it left the Senate I voted for it I think all of us voted for it this is a dramatic change we had an inmate a prison guard die for the first time in a number of years in one of our correctional facilities you know it is critically important for prison staff to have the tools necessary to maintain order and you know I do understand that

[01:43:35] we want to make sure that visitation privileges are not being suspended or taken away for technical violations but this goes too far. This deprives the prison authorities of any discretion in this matter. This language could not be more clear. It says visitation privileges may be suspended only for conduct that presents a direct and substantial threat to physical safety of participants or

[01:44:09] the security of the facility it does not have any exception for repeated violations for the prison to exercise any judgment or discretion I just would hope that we would not do this make such a substantial change to this in conference and I respectfully submit that this puts prison employees and I in substantial situations that present substantial risk of personal harm.

[01:44:47] And I would hope we would not do this. Thank you. The senior senator from Loudoun. Thank you, Madam President. Madam President, with the senator from Norfolk, would she rise for a question? Senator, will you yield? Yes, Madam President. Senator from Loudoun. Madam President, I would ask the senator from Norfolk, this bill is a bill that you worked on with individuals from the Department of Corrections senator from Norfolk the answer to that question is yes we spent a significant amount of time with the Department of Corrections working on this language to ensure that it is language they were comfortable with and

[01:45:23] their area of expertise in working in this field every single day and that this would be the best way to move forward and keeping the work group so that we could walk into gum at the same time. Madam President, I would ask if the Senator would yield for one further question. Senator, will you yield? Yes.

[01:45:41] Senator from Loudoun. Madam President, I would ask the Senator if the Department of Corrections is in fact supportive of this bill and the language contained in it. Senator from Norfolk. Madam President, the Department of Corrections is supportive of the bill and the language contained. Madam President.

[01:45:58] Senator from Rockingham. I'd ask if the Senator from Norfolk would yield for another question or two. Senator, will you yield? Yes, Madam President. Senator from Rockingham. Madam President, I'd ask when Senator indicates that the Department of Corrections approved this, worked on this, and supports this, I would ask whether the Senator is talking about line officers, prison staff, the men and women who put themselves in harm's way, who have to protect

[01:46:32] inmates and hopefully go home to their family every night or whether we're talking about the new administrative staff of the department of corrections senator from norfolk thank you madam president um what i would answer the the senator is that we often and almost always work with individuals in the administration.

[01:47:01] And we often and almost always work with those individuals who are designed to oversee and take into consideration those who work in their employ as subordinates.

[01:47:17] And so what I would say to the senator is, I am not going to start second guessing those individuals who have stellar careers in law enforcement, in corrections, and who are in the administration, and who have spoken on behalf of those who have to implement these rules.

[01:47:42] There is a work group, Madam President, that continues to study and work to improve the practices that the department is taking on. Those that are working, they will keep. Those that are not, they will toss out.

[01:47:59] And those that they can make better, they will. But it is at the level of the secretary, deputy secretary, and those that are working in the administration who while they may be new to the administration are not new to the work of corrections have given us the blessing on this language one further question will the senator yield yes senator from rockingham madam president i would ask the senator whether there are any corrections officers who are members of the work group senator from norfolk i am sorry madam

[01:48:36] president i was distracted could the senator repeat his questions senator from rockingham of course uh what i would ask is whether there are any uh corrections officers who are members of the work group madam president i do not believe that there are corrections officers who are members of the work group but i will say that the staff members in the administration a lot of them are still members who came from the previous administration who will have input into this

[01:49:14] process and this work group thank you the senior senator from loudon thank you madam president madam president i just rise um to speak in support of the bill uh senator has the floor i just want to make a few comments about the bill and i i wasn't i wasn't involved in the writing of the bill or the the um the drafting of it in any way but i i have spent um a fair amount of time with working with the department of corrections and so i just i just want to say a couple of things um i want to say that one i find the people in the department of corrections to be

[01:49:50] as a general matter upstanding individuals who do their best every single day in what are very challenging and difficult environments and they don't get paid enough and they work very very hard I have a family member who is a retired federal Department of Corrections officer and so I have some intimate knowledge of what they do and I've been down to tour several of our of our presence here in the Commonwealth of Virginia and so I find sort of any insinuation that maybe this is the current administration and not the former administration and so therefore maybe these individuals don't care as much about the employees under

[01:50:28] their purview I have never experienced that or found that to be true I find that these that prison officials are consummate professionals and they care very much about their profession they care very much about the people under their supervision I will note about the paragraph that we've been discussing it appears to me that there's a couple things it's not just the one sentence that we've been

referencing it says besides the sentence we've been referencing, it says, visitation shall not be denied or suspended based solely upon an individual's confinement status, including placement and restrictive housing, unless such visitation presents a documented and ongoing security risk.

[01:51:04] And there's another sentence there in that paragraph, but I think what the paragraph is trying to get at is one of the concepts that we know about folks who are incarcerated, which is that contact with other human beings is incredibly important to their ability to to their time while they're incarcerated.

[01:51:25] And so what I take from that paragraph is they are trying to craft policies, and it sounds like the Department of Corrections is supportive of that paragraph, that make it where an individual can continue to have ongoing human contact with people who care about them, which studies have shown is beneficial to those folks in prison and beneficial to their safety and to the officer's safety if they are allowed to have that kind of contact, unless there's something that prohibits them from being able to do that matter, President.

[01:51:50] And so I would suggest that I will defer to the experts in the Department of Corrections who I do believe do their best to speak for and take care of the individuals, corrections officers underneath them, that what they're trying to do is actually protect their safety and the inmate safety.

[01:52:07] And I'll just point out, Madam President, on line 82 of the bill in the work group, it does say that corrections staff and administrators will be part of that work group, Madam President, and I would take that to mean that corrections officers our staff um would would be included in that group madam president thank you senator from norfolk if no one else would like to speak senator has the floor madam president this bill just simply boils down to making sure that individuals who are incarcerated have the opportunity to have

[01:52:43] meaningful in-person visitation with their families and that there is a consistency available with that we have not had in-person visitation has been significantly and severely reduced since covid we went we did away with in-person visitation due to covid and we used all excuses in the previous administration in the book to keep from going back to in-person visitation and this provides the opportunity for those individuals who will come out more than 90

[01:53:23] of individuals who are incarcerated will come out and they don't just come back out and you push a button and they automatically reconnect with their families in-person visitation allows them to be able to maintain relationships often restore relationships and it helps them to be better more productive human beings when they are released from prison. I feel like we have gotten the input from the experts in this area, in the administration. We are going to continue to work with them. We're going to work with advocates. We're going to work with those folks who have

[01:54:01] been involved in the prison system to make in-person visitation as useful and as meaningful and as consistent as we possibly can and with that i renew my motion that we accept the conference report the question is shall the senate adopt the conference committee report on house bill 173 all in favor of that motion will record their votes i those opposed no are the senators ready

[01:54:33] to vote have all the senators voted do any senators desire to change their vote the clerk will close the role. Ayes 21, noes 18. Ayes 21, noes 18. The Senate adopts the conference committee report. Turning, oh, he's not here. All right, go back to page 4. Page 4, House Bill 178.

[01:55:01] Senator from Western Henrico. Senator from Norfolk. President cannot go by temporarily.

[01:55:32] Without objection, House Bill 178 goes by temporarily. Thank you. Page 6, House Bill 285. Senator from Western Henrico. Thank you Madam President. Madam President I move we adopt the conference committee report and speaking to that motion. The senator has the floor. Thank you Madam President. Madam President members of the body just to briefly refresh our memory this is the workgroup bill that's based on the FERC order 2222 that was issued in 2020 about distributed energy resources and this is about trying to maximize our use of distributed energy.

[01:56:08] You should support this bill for one of two reasons. One is this is gonna get us more affordable energy. And secondly, if you don't like utility scale solar, you should like this bill because this puts more solar and batteries where I live and less where utility scale solar goes. The substance of the bill has remained the same. The conference report was mainly was totally about who is on this commission. And you'll see in lines 21 through 27 where we went from it started at 25 the Senate position was 12 we're at 15 members half governmental half non-governmental if you want to talk details about it I will but otherwise I

[01:56:46] would just ask that we adopt the conference report the question is shall the Senate adopt the conference committee report for House bill 285 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 22, no 17. Ayes 22, no 17. The

[01:57:21] Senate adopts the conference committee report. Page 6 has bill 286. The senior senator from Loudoun. Thank you Madam President. Madam President I move that we adopt the conference report and speaking to that motion. Senator has the floor.

[01:57:47] This bill is this is the National Guard bill and it's quite different from the bill that passed out of this body. I have the Cognate, Delegate Helmer has had the House bill, which this is, this bill is trimmed down. You'll see the first part of it deals with an annual report that's to be issued by the Adjutant General as to essentially what they've been doing throughout the year.

[01:58:10] The second part makes a statement that the governor shall not call forth the National Guard to intimidate or harass voters at the ballot box. The third part says um that uh an armed militia essentially can only enter cannot enter the commonwealth over the governor's um objection unless it's for their other lawful purposes the fourth part says members of the general assembly can ask the attorney general for a legal opinion as to actions of the national guard and the last part of the bill is a lengthy study related to the national guard madam president um and with that i would move passage the chair recognizes the

[01:58:46] senior senator from virginia beach madam president will the gentlelady from loudon senior senator from loudon yield for a question will the senator yield i yelled senator from virginia beach madam president i asked the senior senator from loudon um are there any instances in virginia or when was the last instance in virginia that you're aware of that the national guard has ever harassed anybody at the ballot box senator from loudon president i am not aware of any instances of that happening in the Commonwealth of Virginia. Madam President, speaking to the bill. Senator has the floor.

[01:59:25] Madam President, this kind of shocks me. This shocks me because we are putting statements out there that are leading and saying, oh, the National Guard's out there going to harass people at the violent box. That's never happened in Virginia. Heck, I'm not sure where it's ever happened in the United States. So why would we ever put it in a bill? I would urge the body to vote against this and hopefully we can get back to where we're truly legislating with policy not

[01:59:57] comments and misleading statements thank you senator from loudon madam president if no one else wishes to speak senator has the floor thank you madam president madam president as i said whenever i introduced this bill on the floor um when we passed this bill on the floor on the senate side and i believe on the house side um you know this bill is in response to actions that have been taken at the federal level by our current sitting president of the United States and I think up until the point when that started happening around the country I think people maybe felt differently

[02:00:32] like they have in other circumstances as we've seen what has been by all accounts I believe um an expanded uh powers uh that have been enacted and taken upon by um by the executive founder president and so I think this is just one of a series of things where people around the country are anxious and we've seen as National Guards have gone into states like California and done things that the people there didn't appreciate madam president we've seen the federalization of the National Guards in ways that people don't appreciate and makes them feel less

[02:01:08] safe in their states madam president and so this bill is meant to address those things and we've seen more recently on the issues of states issue states rights you know madam president voting is a state's rights issue how that voting happens and in what order is a state's rights issue madam president that is one of the things that is reserved to the states and we have heard rhetoric out of the white house about a request and demand to take over how voting occurs in the state's madam president and so i think that that part of the bill the the part that the senior

[02:01:46] senator from virginia beach is referencing is a response and reaction to things people are worried about madame president as voting proceeds this year on a variety of issues that are controversial we want folks to be able to go to the ballot box and to vote their conscience without fear or without interference madame president as is the way that we in a democracy believe that voting should occur and with that i move we adopt the conference report the senator from orange thank

[02:02:22] you madame president will the senator from loud and rise for a question will the senator yield

[02:02:29] I yield Madam President. Senator from Orange. President, if I could ask the Senator to look at, I think it's line 90. I think it's, let's see, wait. I think it starts on line 89 at the end. In completing this work, the group shall evaluate additional requirements related to the National Guard mobilization, including whether and what extent special legislation or legislative sessions should be called and what informational notices and reporting to the General

[02:03:06] Assembly leadership should be required upon mobilization. My question to the Senator from Loudoun is, isn't this really taking away some of the power of the Governor? Senator from Loudoun. I would respond to the Senator from Orange. The section of the bill from line 81 down to 100 of the bill is a study that's being that is being requested with a number of people including Secretary of Veterans and Defense Affairs who will convene a work group. And so Madam President, I would suggest that the item that the senator from Orange mentioned is one of the things that

[02:03:41] they are asking the study to look at. And to Madam President, if there were concern that that were taking away some of the power of the governor or Madam President, then I think that that would be something that the study would work through and make a decision about Madam President. But at this particular point in time, that language is just study language. So I don't think it does anything more than ask people to look at something, Madam President. Madam President, I thank the senator from Loudon

speaking to the bill. Senator has the floor. Madam President, I rose and spoke about this bill the other day and one of the few members that actually served in the National Guard prior to going on active duty and is

[02:04:20] intricately involved as I am with our adjutant general and the members of the Guard. Madam President, I am concerned of some of the language like the senior senator from Virginia Beach has on some of these things we're putting in the I know for a fact, for a fact, whether you like it or not, the current Department of War is looking at every state that is doing things like this and trying to decide what, if any, equipment we keep, if we're going to get funding, how those things will work.

[02:04:55] and so my I just want to caution this this body that as we continue to do these sort of things especially with the current administration I think we're bringing heat we don't really want to bring down to the Commonwealth that could have a detrimental effect to the way our National Guard responds to natural disasters and with that I'd ask that we not support the bill the question is shall the Senate adopt the conference committee report for House bill 286 all in favor of that motion will record their votes aye those opposed no are the senators ready to

[02:05:30] vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 21 nose 18. ayes 21 nose 18 the senate adopts the conference committee report

[02:05:49] page 39 senate bill 786 756 i'm sorry the senator from eastern fairfax thank you madam president i

[02:06:29] would move to request a second committee of conference. The question is, shall the Senate request a second committee of conference for Senate Bill 756? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 30, noes none. Ayes 30, noes 9.

[02:07:08] The Senate requests a second Committee of Conference for Senate Bill 756. Conferees on the part of the Senate as named by the Chair of General Laws and Technology, Senator McPike, or Senators Cerevelle, Marsden, and Reeves.

[02:07:32] Page 8, House Bill 496. The Junior Senator from Loudoun.

[02:07:51] Thank you, Madam. Thank you, Madam President. Second. Yes, it's the House Bill 496.

[02:08:07] um thank you madam president this is the um house cognate for my senate bill senator will you make a motion first yes i make a motion to adopt the conference report and will you speak to the bill thank you senator has the floor thank you thank you madam president um this is the data center water bill this is a cognate uh to my senate bill 553 um that previously passed out the senate on a bipartisan vote of 25 to 15. The version that passed the Senate simply required

[02:08:44] that local water suppliers report the monthly or quarterly consumption, I repeat consumption of water by data centers on an annual basis to DEQ, increasing transparency around a critical resource. If they have monthly, they would report monthly, if they have quarterly, they will report quarterly. Our conference report, Madam President, includes those original provisions along with some additional compromise language that would require a water utility to do this same reporting to the extent they are able to without having to undergo to

[02:09:19] update their billing system the reporting will include now breakouts of water usage into high consumption categories including domestic industrial and commercial whether together or separately

then other non categorized users also. Again, this is to the extent the water utilities can do this to their best of ability. The bill is now, Madam President, supported by the Virginia Municipal Drinking Water Association, Virginia Association of Municipal Wastewater Agencies, and it also includes technical feedback from the DEQ agency. And with that, Madam President, I move the passage of the conference

[02:09:58] report. The question is, shall the Senate adopt the conference committee report for House Bill 496. All in favor of that motion will record their votes aye, those opposed no. Are the senators ready to vote? Have all the senators voted, do any senators desire to change their vote? The clerk will close the roll. Ayes 26, noes 13. Ayes 26, noes 13. The Senate adopts a conference committee report. Page

[02:10:32] 11, House Bill 8-650. The senator from Central Fairfax. Thank you madam Madam President, I move that the Senate agree to the conference committee report and speaking to that motion. The Senator has the floor. Madam President, this is the bill to preserve the integrity of our courthouses by requiring a judicial warrant for any arrest inside the courthouse and protecting people on their way to and from the courthouse from civil arrest.

[02:11:00] The compromise aversion that is before everyone is where we narrowed the ability to bring a cause of action to a person who are privileged from civil arrest, along with clarifying that the AG can bring an action for appropriate equitable injunctive and relief for an illegal enforcement action in a courthouse.

[02:11:25] Too much that we removed the class one misdemeanor for an illegal immigration enforcement in other protected areas and gave the AG the option to bring that action instead. As the requirement of the notification, there's also an addition, there's also a section related to the requirement of notification to student, faculty, and staff when there is an immigration enforcement on campus has been narrowed and made it permissive.

[02:11:52] Madam President, with that explanation, I move that the conference report be agreed to. The Senator from Franklin County. Thank you, Madam President. With the gentleman from Central Fairfax, I yield for a question. Senator, will you yield? I will yield for a question. Senator from Franklin County.

[02:12:07] Thank you, Madam President. I'd ask my friend, can he explain to me, even in 32 years in the practice of law and criminal and civil trial work, can he explain to me what a judicial warrant is? Because I've never heard of it. Not in the practice of law. Senator from Central Fairfax.

[02:12:24] Madam President, to the Senator from Franklin County. Franklin County. As a non-lawyer in the body, I would, you know, I don't have the details of what a judicial warrant is or, but I do know it has to come from a judicial body and I will refer it to the Senator from Prince William, Eastern Prince William.

[02:12:51] Senator from Eastern Prince William. Thank you, Madam President. Madam President, I would respond and say that a judicial warrant is a warrant that's issued by a magistrate or judge in the Commonwealth of Virginia. I thank the gentlelady for trying to answer that question thank you madam president the question is shall the Senate adopt the conference committee report for a house bill 650 all in favor of that motion will record their

[02:13:29] votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll. Ayes 21, noes 18. Ayes 21, noes 18. The Senate adopts the conference committee report. Page 12, House Bill 930. The Senate, the Senator from Eastern Fairfax. Thank you, Madam President, I move the bill, the conference, sorry, I move that we adopt

the conference committee report and speak to that motion. Senator has the floor. Ladies and gentlemen of the Senate, House Bill 930 is a piece of

[02:14:07] Senate Bill 654 having to do with employee retaliation the the provisions in front of you that are different from what we passed before is number one this version drops the Senate version's definition of employee that included an employee current employee or a former employee so it's only it only says employee now in addition the Senate version protected reports to a supervisor manager officer or other employee without qualification the conference report breaks it into subcategories and it says that if they

[02:14:43] report to another employee it's only protected if the report is made in writing memorialized in writing within a reasonable period of time and it also dropped the phrase including a report made in the ordinary course of employment and it also dropped the reenactment clause from the bill so it's actually a live bill now that's basically what this does also is tell the body it's slightly different from a version you're going to be seeing here in a minute in Senate bill 644 when that conference report posts which is even more

[02:15:18] employer-friendly than this one that's what the bill does the question is shall the Senate adopt the conference the senator from Rockingham madam president speaking to this senator has a floor madam president I just want to point out some of the really extraordinary features of this bill my understanding is that this is the cognate the 644 partial cognate madam president could

[02:15:57] with the center from Eastern Fairfax yield first question senator from will you yield are you senator from Rockingham madam president I would ask the senator from Eastern Fairfax does this have the prohibitions on retaliatory action the civil liability the blacklisting prohibitions the whistleblowing provisions that Senate bill 930 have or excuse me that Senate

[02:16:29] bill 644 has senator from Eastern Fairfax what I would say to the senator is that House bill 930 still has the blacklist prohibition and I believe the other provision that you cited I believe that is taken out of the conference report for 644 which is about to post but hasn't posted yet which is why I said there was a couple things that were in this they were taken out of 644 which

[02:17:01] we'll see later so madam president I guess could this go by temporarily without objection house bill 930 goes by temporarily page 12 has bill 932 Thank you.

[02:17:38] Senator from Charlottesville. Madam President, I move the conference report be agreed to and I'd like to speak to that motion. Senator has the floor. Ladies and gentlemen of the House, ladies and gentlemen of the Senate. You will recall that this is the bill that recodifies Title 30.1.

[02:17:57] And honestly, these recodification bills are not often divided by a partisan basis. This is the bill that has a section here and it's part of the conference report. So it still will be a partisan vote aspect that repeals the code section that requires a certain advertisement before an election.

[02:18:17] The rest of the, most of the rest of the bill, the longer we looked at this bill, the more issues we found in it. Not big issues, but issues nonetheless. And so most of the rest of this bill has a reenactment clause on it. I mean, that's the conference report. I hope you'll agree to it.

[02:18:37] The Senator from Hanover. Madam President, would the Senator yield for a question? Senator, will you yield? I will yield. Senator from Hanover. Madam President, the senators are aware, even though as a conferee, I've not seen this until it posted.

[02:18:53] But tell me, this section that repeals 30-13, repeals it somehow retroactively to when before I was born in 1971? You are, Madam Chairman. Senator from Charlottesville.

[02:19:09] President, I would say that this young man should not admit his youth. By admitting his youth, he's also admitting inexperience. This bill does say somehow this section is repealed, retroactive in 1971, and that's what the bill says.

[02:19:33] Madam President, would Senator yield for additional question? Senator, will you yield? I would certainly yield. Senator from Hanover. Madam President, I'd ask the gentleman since he referenced my inexperience in time travel, can he explain to me how he got back to 50 years ago and each of the years before this year and eliminated a code section retroactively?

[02:19:57] Senator from Charlottesville. Madam President, I would tell the gentleman that Michael J. Fox has this device that I get into every once in a while. And I would tell the gentleman I also believe in Santa Claus and the Easter Bunny. Madam President, speaking to the bill.

[02:20:15] Senator has the floor. Madam President, I might believe in Santa Claus and the Easter Bunny, but this is just fiction, just plain old fiction. Madam President, this goes back to the redistricting debate, and I just want to remind the members of a few things, and since I hadn't been brought up, I wasn't quite as prepared as I would have liked to have been, but Madam President, when I went back and started looking at some things and I heard this debate about fairness and I heard this conversation that we had to do these things because other states had done it and madam

[02:20:52] president I started looking and started to look and see that there were a number of other states that had significant Republican voters but they had no Republican members of Congress madam president they were states like like Vermont and New Hampshire, and I believe there were about seven states that didn't have ... here's my list. Massachusetts, 36% Republican votes, zero Republican members of Congress. Connecticut,

[02:21:29] 42% Republican votes, zero members of Congress. Maine, 46% Republican votes. How many Republican members of congress do you think zero a chairman of the democratic party got it right new mexico 46 members republican votes how many members of congress zero new hampshire 48 republican vote

[02:22:01] guess how many republican members of congress they have sorry you didn't win it's zero the The chair reminds the members we do not participate in speaking out when a senator is speaking.

[02:22:19] Senator, please continue. Rhode Island, 42% Republican votes. How many members of Congress are Republican? Zero. Hawaii, 38% zero. And Madam President, then you come to a few other jurisdictions.

[02:22:37] Some of these are larger. California, 38% Republican voting strength, 20% of their members of Congress are Republican. Illinois, 44% voting strength, how many members of Congress do they have, 17%.

[02:22:57] New York, 43%, they have 26% of their members are Republican districts. Maryland, 34% Republican, they have 12% of their districts. That's one seat.

[02:23:12] That'll be like Virginia, one seat. New Jersey, 46% Republican strength, three seats, giving them 25%. And finally, Madam President, Oregon, they have six seats, 41% of their voters vote Republican, but

Republicans only have one seat in Congress.

[02:23:32] Madam President, I've seen some ads funded by certain parties out of D.C. that do not affiliate with my side of the aisle. And, Madam President, this bill, this provision is, again, an unfair attempt to reduce one political party's voting strength.

[02:23:53] Madam President, it's not just happening here in Virginia. It's happened in Massachusetts, Connecticut, Maine, New Hampshire, New Mexico, Rhode Island, Hawaii, California, Illinois, New York, Maryland, New Jersey, and Oregon.

[02:24:09] And Madam President, I haven't heard anybody, including the Majority Leader, stand up on the floor or in any other way. Tweet, smoke signal, carry a pigeon, and deprive the... Senator Walpaz. Would the gentleman yield for...

[02:24:25] Senior Senator from Henrico. Would the gentleman yield for a question? Senator from Hanover, will you yield? In just one moment, I'd be happy to yield to my good friend from Richmond. And I've not heard members stand up and decry how unfair those states are and how they should be looking to redo their districts and how to bring fairness back to the rest of the Commonwealth of Virginia.

[02:24:50] They need to make sure that their districts are in a way that is not partisan in one direction. Madam President, I'm happy to yield from the Senator from Richmond. The Senior Senator from Henrico.

[02:25:06] Thank you, Madam President. Madam President, I'm enjoying this so much that I wish the gentleman will continue and do all 50 states. Senator from Hanover. Madam President, if the gentleman gives me a little bit, we might be here until 7, 8, 9 o'clock.

[02:25:22] I'm happy to do the research on the rest of the states as well. Seeing no other senators who wish to speak, does the senator from Charlottesville wish to? The question is, shall the Senate adopt the conference committee report for House Bill 932?

[02:25:44] All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[02:26:00] ayes 21 noes 18. ayes 21 noes 18. the senate adopts the conference committee report. page 13 has bill 1005. the senator from alexandria. thank you madam president i move that the senate agree to the conference committee report and speaking to that motion. senator has the floor. thank you madam president the conference report represents a balance between the house and senate bills. key stakeholders in the apartment and real estate industry are good with the report. it clarifies that landlords must accept checks and money orders and retains the senate language that clarifies

[02:26:43] that landlords can charge or pass along third-party processing fees but cannot charge fees beyond that for collecting rent via credit card debit card or electronic payment. Again I move the Senate agree to the conference committee report. The question is shall the Senate adopt the conference committee report for House Bill 1005? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote the clerk will close the role as 21 knows

[02:27:20] 18 eyes 21 knows 18 the Senate adopts the conference committee report page 14 has bill 1007 the senior senator from Loudoun thinking about our president members and I move that we adopt the

conference committee report and speaking to that motion senator has the floor so this is the bill that seeks to put some guardrails around the birth injury fund that we've read about in the newspapers The bill is substantively the same as it was when it left the Senate chamber with a few small minor changes from various stakeholders who weighed in.

[02:27:55] Those include changing the wording around responsibility of costs for the development of the electronic filing system to ensure those costs incurred by the Virginia Workers' Compensation Commission will be reimbursed by the program and paid from the birth-related neurological injury compensation fund. They also included the original bill called for the board compensation to be restructured to include three members who were family members.

[02:28:15] That's been dwindled down to one by agreement. And the third one changes to provides clarity in the newly established guardrails surrounding reimbursement of receipts. In that the program must acknowledge and begin the process of the reimbursement request within 15 business days rather than just requiring the program to respond to the request within 15 calendar days, Madam President.

[02:28:35] With that I'd move, we adopt the conference committee report. The question is, shall the senate adopt the conference committee report on House Bill 1007? All in favor of that motion will record their votes aye, those opposed no, are the senators ready to vote?

[02:28:53] Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 39, no zero.

[02:29:10] Ayes 39, no zero. Senate adopts the conference committee report. Page 14, House Bill 1011. Senator from Eastern Fairfax. Move to adopt the conference committee report and speak of the motion. Senator has the floor. Ladies and gentlemen, Senate, this is a bill that has to do with composting. The House version was slightly different than ours, which I chose to accept here. Basically, the House version allows localities to opt in to composting, but if they do, it requires them to mandate that

[02:29:44] any business that generates at least one ton of organic waste weekly must compost or anaerobically digest waste. In our bill, there was no requirement for that. This would make it mandatory if a locality chooses to opt in. In addition, it also adds anaerobic digestion as an option and not just composting. Other than that, the other changes are mostly technical, although they want DEQ to expand their litter tax study to look at composting. That's basically what the

[02:30:16] changes are. I hope we can adopt the bill. The question is, shall the Senate adopt the conference committee report on House Bill 1011? All in favor of that motion will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The

[02:30:48] clerk will close the roll. Ayes 21, noes 18. Ayes 21, noes 18. The Senate adopts the conference committee report. Senior Senator from Prince William. Madam President, I move to waive the reading of the communications from the House. The question is, shall the Senate waive the reading of the House

[02:31:25] communications? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any Senators desire to change their vote. The Clerk will close the roll. Ayes 34,

[02:31:49] noes 5. Ayes 34, noes 5. The reading of the communication is waived. 16, House

[02:32:23] Bill 1272. The Senior Senator from Prince William. Thank you, Madam President, I move that the Senate accede to the request of the second committee of conference. The question is, shall the Senate accede to the House request for a second committee of conference for house bill 1272 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators

[02:32:53] desire to change their vote the clerk will close the roll ayes 35 noes four ayes 35 noes four the senate accedes to a second committee of conference on house bill 1272. comfries on the part of the The Senate is named by the Chair of General Laws and Technology, Senator McPike, or Senators

[02:33:17] Rouse, McPike, and Head.

[02:33:41] Page 15, House Bill 1046. The Senior Senator from Prince William. Thank you, Madam President. I move that the Senate adopt the conference committee report and speaking to the motion. Senator has the floor. Thank you, Madam President. This is the bill requiring public contracts to have notice on use of independent contractors in both state and local contracts what's a little different in the contract is that it is instead of an authorization at the local level it's simply notice to the contract managing entity and it is authorization required at the state level however there's waiver of sort of any sort

[02:34:22] any acknowledgement that other than it's the the contractor utilizing the independent contract typically you'd find that when there's limited uh independent contract work in certain sections of contract construction work so those are the primary differences in the conference report and move its adoption the question is shall the senate adopt the conference committee report for house bill 1046. all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change

[02:35:01] their vote the clerk will close the roll ayes 21 noes 18. ayes 21 noes 18 the senate adopts the conference committee report page 15 has bill 1208 the senator from hampton thank you madam president i move that the conference committee report be adopted and speaking to that senator has the floor thank you madam president uh house bill uh 1208 is a cognate to a bill that i carried and this bill addresses early childhood care in education and more specifically access to child

[02:35:40] care the conference report does two things first it addresses funding and second reporting requirements as to funding the report states that if wait lists for slots and early childhood care and education sites remain at the end of the fiscal year up to five million dollars from prior year unexpended state general funds may be carried forward to the current fiscal year to temporarily provide additional slots in an effort to reduce or eliminate waitlist.

[02:36:08] The conference report notes that the Department of Education shall monitor programs utilization and attrition to ensure that no families will lose access at the end of the current fiscal year. The conference report also moves the reporting date up from December to October of each year for reporting of data to calculate the minimum funding number of slots needed.

[02:36:32] With that explanation, Madam President, I move that the conference report be agreed to. The question is, shall the Senate adopt the conference committee report for House Bill 1208? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote?

[02:36:48] Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 39, no, 0. Ayes 39, no, 0. The Senate adopts the conference committee report.

[02:37:06] Page 16. House Bill 1263. The Senator from Eastern Fairfax. Can I go by temporarily? Without objection, House Bill 1263 goes by temporarily. Page 17, House Bill 1301.

[02:37:41] The Senior Senator from Prince William. Move the adoption of the Conference Committee report and speaking to the motion. Senator has the floor. Thank you, Madam President. This is the type 1 diabetes bill that this body's been working on for the last two years. The conference committee report adopted additional language, including the methods of administration recognized in the most recent edition of the American Diabetes Association, and one section struck it from another to clarify language that was debated during the health committees, and then modified the sections of lines 87 through 91, including inserting in conjunction

[02:38:20] with the student's provider. Just a clarifying language, which was discussed as the House version was debated in the committee, and the reenactment is now removed, and so I appreciate all the committee's work over the last two years on this and move the conference committee adoption.

[02:38:39] The question is, shall the Senate adopt the conference committee report for House Bill 1301? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 39 noes 0 ayes 39 noes 0 the Senate adopts the conference committee report page 18 has bill 1385 senator from Charlottesville madam president I move the bill passed I'd like to speak that motion please

[02:39:19] senator has the floor madam president ladies and gentlemen Senate this bill is a culmination of several months of work by several well lots of people it's a cognate of the Senate bill that I carried and that the senator from Eastern Fairfax carried he had a version of it we put them together it the bill is principally in the same shape it was it's 494 over here it's principally the same shape that it was when it left the Senate even though it it says it was here 20 to 20. I think the other bill passed 21 to 19 but I'm not certain about that. Three

[02:39:58] principal things that I'll I will I'll summarize. Number one it says that the members of the board of visitors of the various schools in Virginia serve six-year terms. They serve one term. It's designed so that over a period of time that you'll over well this will probably take a couple governors governor gubernatorial terms to get through but eventually the terms will be staggered such a way that no governor will have more than fifty percent of the appointees on a board.

[02:40:25] The second thing it does is a faculty member, a staff member, and a student are all ex-officio members of the boards. They don't have votes, but they get to pick their own people to be on the boards. The faculty picks their own representative, the staff picks their own representatives, the student government then picks three reps, three people, and the board of visitors chooses for that group to be on the ex-officio member and the third thing that it really does we were we were hung up on the issue of whether these the boards would have independent counsel or not and in the last enactment calls of this bill it contains a work group that's going to be managed by the by chev

[02:41:04] and the attorney general and um some former university council as members to try to figure out the issue of whether and they they should have independent counsel outside of the attorney general's office I hope you will pass this conference report the senator from Rockingham senator senator has the floor there are 130 people at least in this chamber and down the hall who look in the mirror in the morning and see the

[02:41:43] next governor of the Commonwealth of Virginia looking back at him well this I said 130 I figure that there at least a few like me who have who have a long since abandoned their statewide ambitions but while while this is going to result in staggered terms for board members in the future and and is going to allow governors to shape their own boards what we're doing right now is we're handcuffing the next governor of the Commonwealth of Virginia we are

[02:42:20] giving this governor the authority to control all of the colleges and university boards for the next two terms not just for this term but the next term as well I don't think that's right and I think you potential gubernatorial candidates ought to take a second look at this bill the question is shall the Senate adopt the conference can I just speak senator from Charlottesville at briefly and I and and I hope you appreciate the fact that I don't speak

[02:42:57] unless I have to speak but in this past year we had crisis in our system of higher education. We saw how important it is that over the long haul we build a wall between the world of partisan politics and academia. Our workforce is trained in higher education. The ideas that fuel our future are developed in higher education. We simply have to have a wall between partisanship and education. And there are short-term shortcomings with this approach, but over long haul and we have we in the Senate forever have been thinking about the

[02:43:35] long haul over the long haul we have to be prepared to develop this wall between politics and higher education I hope you will vote for this bill the question is shall the Senate adopt the conference committee report for House bill 1385 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to to change their vote. The clerk will close the roll. Ayes 21, noes 18. Ayes 21, noes 18. The

[02:44:14] Senate adopts a conference committee report. Page 18. Page 18. House Bill 1393. This is the second

[02:45:13] committee of conference. The Senate, senior senator from Fairfax. Speaking to the, or I move that we approve the second conference report on House Bill 1393 and speaking to that. Senator has the floor. Thank you, Madam President. I want to thank the body for allowing us to come up with a second conference report. We've removed some language of concern to a number of members. What this conference report does at this point in time is very similar to the one for Senator Lucas's bill,

[02:45:51] Senate Bill 253, which we are going to be taking up later. To be clear, the bills are not in conflict. This recommended second conference report simply includes one provision that we're not in the conference report substitute for Senate Bill 253, which we will take up later.

[02:46:10] This provision gives the State Corporation Commission discretion to determine the extent to which the public interest would be served by requiring that work on certain power generation and storage resources be compensated at the prevailing wage rate.

[02:46:25] Again, it is the SEC making these determinations about the public interest and practicability, anyone else and not this bill. With that summary I hope the body will support the conference report substitution. Thank you. The senator from Western Prince William. Can this bill go by temporarily? Without objection. House bill 1393 goes

[02:46:50] by temporarily. Page 19 has bill 1441. Senator from Western Fairfax. Thank you madam president. Central Fairfax. Thank you madam president. I move that the Senate agreed to the conference

committee report and speaking to that motion senator has a floor thank you madam president this is our bill to create conditions

[02:47:28] to uh which must be met in order for our state and local law enforcement agencies to have agreements to participate in federal immigration enforcement activities the conference report broadens the definition of federal immigration enforcement agreements to make sure we address all of the various agencies and agreements that can be part of federal civil immigration enforcement we also have a section that was modified um with a subs to clarify that it does not in any way

[02:48:03] prohibit law enforcement from investigating any state or federal crimes um essentially this bill kept everything that was uh that went out of the out of the senate with some clarification with that i ask that we uh agree to this conference report the senator from colonial heights Madam President, I rise to speak in opposition to the conference committee report.

[02:48:26] Senator has the floor. Madam President, at a time when Virginians are seeing headline after headline about violent crime involving illegal aliens across Virginia, the last thing we should do is make it harder for law enforcement to work with federal immigration authorities.

[02:48:43] This conference substitute effectively bars officers from assisting or using law enforcement resources to facilitate federal civil immigration enforcement. then piles on a long list of conditions for any enforcement agreement.

[02:49:00] And we are debating this bill in the context of the Fairfax County bus stop murder just a couple of weeks ago. Stephanie Minter from Spotsylvania, we unanimously agreed to her memorial resolution just earlier today.

[02:49:18] That suspect had been arrested several times and was already the subject of an ICE order of removal before he had stabbed Stephanie Minter to death at that bus stop in Fairfax. That is the real world backdrop for this vote.

[02:49:34] When Virginians see a woman murdered at a bus stop by someone who should never have been on the street, they don't want us tying the hands of law enforcement. They don't want more delay, more restrictions, more roadblocks, more excuses.

[02:49:52] They want cooperation and they want enforcement of the law. And they want these dangerous, illegal criminals removed before another innocent Virginia citizen gets hurt or killed. This conference report moves us in exactly the wrong direction, Madam President, and I'd ask the body to reject it.

[02:50:13] The Senator from Eastern Fairfax. Thank you, Madam President, speaking to the bill. Senator has the floor. Madam President, I didn't intend to do this, but again, for the second time, for once again, This murder that occurred in my district has been brought up again.

[02:50:40] And when I talked about this two weeks ago, I explained that this person who murdered Stephanie Minter in my district was in the custody of ICE in President Trump's first term.

[02:51:00] And President Trump's ICE chose the releaser. I have no idea why, but he did. The guy was arrested eight more times without detainers being issued by Trump's ICE. After I gave that speech, not only did I get lots of death threats, not only did a whole bunch of people from all around the country message me all the time, I did receive a message from another woman.

[02:51:25] I'm going to read you what she said: "Senator Surville, I am writing to express my deepest gratitude for the powerful speech you delivered before the Senate on March 6th regarding the tragic passing of my niece, Stephanie Minter. Your words are a moving tribute to her memory and reflect the integrity with which you serve your community.

[02:51:46] Your advocacy for Stephanie and your commitment to justice and compassion resonates deeply with me. It is clear that you truly uphold the values of public service. Thank you for your unwavering dedication and being a voice of strength during this difficult time. Please know you have my full support and sincere appreciation with gratitude, Stephanie Minter's aunt. And she heard all this other stuff that was said on the floor about why her niece got murdered and the family doesn't agree with it. So I'd ask the body to quit bringing it up.

[02:52:14] The Senator from Rockingham. President, speaking of the report. Senator has the floor. President, I'll honor the request of the center from Eastern Fairfax, but I will also point out that we are endangering citizens across the Commonwealth of Virginia, many of them vulnerable citizens, every single day.

[02:52:41] And there's seemingly new examples every single day. Just this morning, there is an article that is posted about an 18-year-old illegal immigrant from el salvador who allegedly groped 12 female classmates in a virginia high school and was allowed into the united states under the biden administration this uh individual who's almost 19 but happens to be a junior in a fairfax county high school has been charged on nine counts

[02:53:17] of assault and battery he was accused of repeatedly creeping up behind students in crowded hallways and grabbing them between the legs this person was allegedly uh illegally uh gained entry to the country in 2024 was released under a biden administration policy these are people who we really need to to take into custody and make sure that they are not victimizing

[02:53:50] people who are vulnerable in our communities this is happening every single day and by passing legislation that ties the hands of law enforcement to do the jobs that we expect them to do we are putting virginians in harm's way daily you know unfortunately these articles are going to continue to come and if we continue to ratchet down the ability of our local governments to cooperate with federal authorities who are trying to do their jobs and trying to keep our communities safe

[02:54:27] we're going to see tragedy after tragedy i'd hope we would not vote for this the senator from northern fairfax madam president speaking to the bill senator has the floor thank you thank you madam president um find it interesting that my good friend from rockingham county mentioned people who are grabbing females between the legs and saying that they should be arrested because the President of the United States was mentioned publicly having done that and

[02:55:02] I haven't heard a peep from my friends on the other side of the aisle about that so let's just make sure that we're being consistent what this bill does is make certain that the federal agents are identifying themselves to our law enforcement I have constituents in my community who are reporting to me that parents, children, aunts, uncles, grandparents who are doing their work every day peacefully and kindly, who have lived in my community for decades some,

[02:55:37] have been swiped up. In fact, my husband was driving down the main street in Herndon and watched a teenager being surrounded by two white vehicles, unmarked individuals got out of the car

knocked him to the ground took him with no no fanfare there was no police officer involved what this bill is intending to do is to protect individuals who are not doing anything illegal who may be here

[02:56:13] without documentation but we've seen in other states that citizens of the United States have been killed they have been harmed they have been taken from their homes without warrants, without any evidence of doing any harm to other people. And I urge the body to vote yes on this conference report. Senator from Western Henrico. Thank you Madam President. Madam President speaking to this conference report. Senator has the floor. Thank you Madam President. Madam President, members of the body, this bill doesn't stop law

[02:56:50] enforcement from enforcing the law. This bill doesn't stop illegal immigrants from being arrested, detained, deported. This bill doesn't do any of those things. And I would ask us to stop making false choices here. People in this body, people in public, often declare their allegiance to the Constitution.

[02:57:13] And then when those values come in tension with some political goal or some hot topic of the day, it just goes into the wind. We've got a president who is trying to get rid of birthright citizenship, clearly labeled in the 14th Amendment. We've got a president who's talking about trying to deny kids in education, which under the 5th and 14th Amendments have been declared constitutional on Pilar B. Doe.

[02:57:38] We got cops who are banging into people's, like, just banging through windows and pulling people out of cars, sending people, sending citizens to foreign countries in jails. We have got a president and an administration that is constantly violating the Constitution, its norms and its values.

[02:57:59] And in Virginia, we're saying enough is enough. We are saying that you can enforce the law and follow our Constitution. That you can make sure that the people who deserve to go to jail go to jail, but that folks can live their lives in peace and quiet if they're just going about their business.

[02:58:20] And I find it stunning that the state of our dialogue, both at the national and state level, is that we can't walk and chew gum on this stuff. That we can't prosecute the people who deserve to go to jail. We can't deport the people who deserve to be deported. while also ensuring that the people who live here, and by the way, citizens have rights, people have rights.

[02:58:39] The 5th and 14th Amendment don't say all citizens have due process. It says all people have due process. And I find it shameful, the stated discourse in the state of the administrative actions at the federal level when it comes to these values and these rights.

[02:58:54] And I would hope we would support this bill because we can walk and chew gum in Virginia. We can arrest and deport illegal immigrants who are breaking the law, who are violent, and we can uphold the rights of everybody else.

[02:59:11] Thank you, Madam President. The Senator from Rockingham. Madam President, I would rise to speak for a second time to the amendment. Senator has the floor. I would rise to concur with my friend, the Senator from Western Henrico County.

[02:59:33] He talks about people who express commitment to constitutional principles, who should not set aside their belief in those constitutional rights. I'd join my friend from Western Henrico and urge you to vote against this redistricting constitutional amendment.

[02:59:54] Wait, that's not this bill. Thank you. Senator from Central Fairfax. Madam President, if no one else speaks to speak. now there's no one else senator has the floor madam president again we have

debated this over and over and i do want to say and echo what uh senator uh from henrico has said uh as well as that our law enforcement is able to follow the law that's what this bill is essentially saying federal law enforcement is able to follow the law we are simply putting guard reels to ensure

[03:00:33] that we don't have situations that have taken place in minnesota where multiple folks that don't look like me that look like the other side of this body that have gotten shot on broad daylight because of the way ICE has acted we have had incident where a five-year-old was taken away from his family and it was he was detained for a brief moment those are the things that this bill is trying to prevent so that this does not happen to Virginians at the end of the day this is more about due process this is about making sure that when our law enforcement who are

[03:01:09] well-trained to handle any situation are not mixed up in the idea of ICE agents who are only trained for 47 days under the new administration. That's what this bill is all about, is to ensure that agencies follow the rule just like they have the last 20 years, just like they should the next 20 years and this year. But for some reason, we have an administration, instead of trying to choose the court system and compassion. They chose cruelty and they will continue to choose that unless we do something and that's what this is about. So I hope that this

[03:01:46] body can agree on this conference report. The question is, shall the Senate adopt the conference committee report for House Bill 1441? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 18. Ayes 21, noes 18. The Senate adopts the conference

[03:02:17] committee report. On page 31, Senate Bill 496, we have a request for a second committee of conference.

[03:02:32] Senator from Eastern Fairfax, do you wish to speak? Senior Senator from Fairfax. Thank you. Thank you, Madam President. Yes, I agree. I move that we do a second conference committee report.

[03:02:49] it's already been drafted drawn up and will be presented to the desk very shortly the question is shall the senate request a second committee of conference for senate bill 496 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll Ayes 21, noes 18.

[03:03:26] 21. Ayes 21, noes 18. The Senate requests a second committee of conference. Comfries on the part of the Senate is named by the Chair for Courts of Justice, Senator Serville, or Senators Marston, Serville, and Obenshain.

[03:03:43] On page 37, Senate Bill 661 requests a second committee of conference. The junior senator from Virginia Beach.

[03:04:03] Thank you, Madam President. I request a second committee of conference so we can make a clear up of technicality. Sorry, Senator, would you speak to the motion? Yes, thank you, Madam President.

[03:04:18] I move to request a second committee of conference. And speaking to the motion? Okay, thank you. The question is, shall the Senate request a second committee of conference for Senate Bill 661?

[03:04:36] All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close

the roll. Ayes 33, noes 6.

[03:04:58] Ayes 33, noes 6. The Senate requests a second Committee of Conference. Comferees on the part of the Senate. As named by the Chair of General Laws and Technology, Senator McPike, are Senators Rouse, McPike, and Head.

[03:05:24] Page 19 has bill 1487.

[03:05:41] The junior senator from Loudoun. Thank you, Madam President. I move that we adopt the conference report. This is the cognate for my Senate bill 827 that previously passed the Senate 2612. The senator has the floor.

[03:05:57] Thank you, Madam President. I now move that we adopt the conference report. I'm speaking to that motion. Senator has the floor. Thank you, Madam President. This conference report provides a critical framework for balancing the infrastructure needs of our digital economy while ensuring the preservation of our communities and safety of our residents.

[03:06:17] As we see the rise of high-capacity transmission line, it is essential that we offer localities a viable path and options to protect the character and safety of their neighborhoods and their communities. This legislation creates pilot programs for undergrounding up to four of these proposed lines in the future in the Commonwealth in areas where they are proposed near residential communities.

[03:06:44] The program is designed as a collaborative partnership to allow a locality to participate by contributing at least 50% of the marginal cost of burying the line provided the State Corporation Commission determines the project is technically feasible and is in the public interest.

[03:07:01] The conference report, Madam President, before us represents a careful consensus between the House and the Senate versions to include a 99 cent monthly cap for residential customers for any levy, and also to ensure these projects do not place undue burden on Virginia families.

[03:07:19] Second, we have refined the levy language, working in consultation with all stakeholders. We have ensured that any levy is structured based on established cost apportionment principles used by the SEC. Third, we have provided localities with maximum flexibility, a locality may meet its funding obligation through a combination of general revenues, general obligation bonds, or a levy.

[03:07:46] This bill is a balanced solution that has the support of our utility and industry partners. Most importantly, it empowers our residents and local governments to have a meaningful say in how major infrastructure is integrated in their communities and have options.

[03:08:02] Madam President, I move the passage of the conference report. The question is, shall the Senate adopt the conference committee report for House Bill 1487? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote?

[03:08:19] Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 28, noes 11. Ayes 28, noes 11. The Senate adopts the conference committee report.

[03:08:39] Senator from Eastern Fairfax. Madam President, we've been at it for a while. I would ask that we recess until 3 p.m. And upon the recess, Democratic caucus meet in the back room here. Madam President. Senator from Orange. Before we break, may we go to the morning hour just for one second?

[03:08:57] Without objection, the Senate will return to the morning hour. Madam President, I just have an announcement. Many of us have been here a while and we've watched our kids grow up. We've missed a lot of anniversaries, birthdays, celebrations, sporting events, being away at the Capitol.

[03:09:17] But, Madam President, I'm proud to tell you that today is a very important day for my seat mate, the gentleman from Franklin, the senator from Franklin, as his son just won two races in a row. So he's number one in the, what's the level, Bandolero race level for NASCAR, which is an achievement that has never been done, so I just want to wish my seatmate congratulations. The Senate will stand in recess until 3:00. Madam President, Senator

[03:09:54] from Hanover. Madam President, if Republicans can immediately go downstairs as

[03:09:59] well, that would be great. The Senate is in recess until 3:00 p.m. The Senate will

[03:47:10] return to order. The clerk will report any communications from the House. The chair recognizes the senator from Eastern Fairfax. Madam President, I moved away the reading of the communication of the House of Delegates. The question is, shall the reading of the communication be waived? All in favor of waiving the reading of the communication from the House of Delegates will record their votes. Aye. Those opposed, no. Are the senators ready to

[03:47:37] vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close

[03:47:51] the roll. Ayes 33, noes 5. The reading of the communication is waived. The House has acceded

[03:48:26] a second committee of conference conference on the part of this what we need to see sorry we need to exceed to the second committee of conference the senator from central Fairfax thank you madam president I move that the Senate a seat to the second committee of conference the question is shall the Senate a seat to a second committee of conference for a house bill 549 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote. Have all the senators voted? Do any senators desire to

[03:49:03] change their vote? The clerk will close the roll. Ayes 22, noes 17. Ayes 22, noes 17.

[03:49:23] The Senate accedes to a second Committee of Conference for House Bill 5. The Senate will be in order. The Senate accedes to a second Committee of Conference for House Bill 549. Comfrey's on the part of the Senate is named by the the Chair of Local Government, Senator Ayard, or Senator Saleem, Senate Vison, and Sederland.

[03:49:54] Page 34. Senate Bill 589, we need to accede to a second Committee of Conference. Senator from Central Fairfax. Thank you, Madam President. I move that we accede to the second Committee of Conference.

[03:50:12] The question is, shall the Senate accede to a second Committee of Conference for Senate Bill 589? All in favor of that motion will record their votes, aye. Those opposed, no. the Senators ready to vote? Have all the Senators voted? Do any Senators desire to change their vote? The Clerk will close the roll. Ayes 22, noes 17. Ayes 22, noes 17.

[03:50:36] The Senate accedes to a second Committee of Conference. Comferees on the part of the Senate is named by the Chair of Local Government, Senator Ayard or Senators Salim Senevasan and Siderlan. Senator from Western, Prince William, for what purpose do you rise? Thank you madam president.

Madam president I move passage of conference report for SB 94 and speaking to the motion. Senator we have not

[03:51:11] yet called a calendar for that. Oh okay soon enough. Conference reports Senate bill page Senate bills page 21 Senate bill 94. Now it's your turn senator.

[03:51:35] Senator from Western Prince William. Thank you madam president this time I actually move adoption of the conference committee report and speaking to that motion. Senator has the floor. All right thank you madam president. So madam president everyone did a really nice job earlier keeping together with where they were last year and met a president we also picked up some bonuses but we lost one of the four s's but we replaced one of the four s's with a couple other folks from stafford from york and even prince edward and then we even had a clarification of former abstention as well so we all hang together on

[03:52:11] the high energy use facility bill like last time cool but here's the bonus of what i ask this is the Senate version. We should get one extra vote this time. So with that, Madam President, I move passage of the Senate Bill 94. The question is, shall the Senate adopt the conference committee report for Senate Bill 94? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to

[03:52:41] change their vote. The clerk will close the roll. Ayes 29, noes 10. Ayes 29, noes 10. The Senate adopts the conference committee report. Page 22, Senate Bill 122. The senior senator from Prince William. Thank you, Madam President. Move the conference committee be adopted. Senator has the floor. Thank you, Madam President. This is the type 1 diabetes bill. As mentioned, we took on amendments uh to address the issues that came out of committee and wanted to once again thank the

[03:53:18] committee members of education and health as well as the parents and students uh who are watching today and been working on this for for so many years and so i wanted to thank the parents for being advocates on this and uh to violet and to uh rustin for for being a champion and coming and testifying and the other stories of other kids coming to the capitol to test testify on this bill so I ask we adopt the conference committee report the question is shall the Senate adopt the conference committee report for Senate bill 122 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to

[03:53:58] change their vote the clerk will close the roll ayes 39 no 0 ayes 39 no 0 the Senate adopts a conference committee report page 22 Senate bill 134 the senator from Hampton thank you madam president Senate bill 134 is to cognate the house bill 1208 which I explained 20 years ago it deals with early childhood care and education and with that explanation I would move that we adopted the conference committee report to Senate bill 134 the question

[03:54:34] is shall the Senate adopt the conference committee report for Senate bill 134 all in favor of that motion will record their votes aye those opposed no are the senator is ready to vote. Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 39, noes 0. Ayes 39, noes 0.

[03:54:56] The Senate adopts the conference committee report. Page 22, Senate Bill 137. Senator from Western Fairfax. Madam President, I move that we adopt the conference committee report in speaking to that. Senator has the floor. Madam President this is the bill that we had on this side that dealt with obstructing health care facility access when it got to the house side it was dramatically changed it was

narrowed down to reproductive health care facilities and we have been able to come together and to find a path forward it remains narrowed

[03:55:35] and it is more closely aligned to the federal protections of the FACE Act and we have kept a class one misdemeanor if you don't follow this law or you continue to obstruct the bill does have definitions as to what intimidating interfering obstruction actually means and um i hope we will be able to adopt this conference committee and actually protect um some of these folks who are going to these facilities looking

[03:56:15] for health care uh and being harassed unduly thank you the chair recognizes the senator from northern fairfax thank you madam president um question for the patron will the senator yield Senator from Fairfax. Thank you, Madam President. I had concerns with the bill as originally written, some concerns around setting a pathway for legal precedent to be overturned at the higher level in the courts, and I'm wondering if the patron has had conversations

[03:56:50] with the stakeholder organizations who do the work that this bill is intended to protect and how they have responded to this conference report senator from western fairfax madam president um it's correct that uh the stakeholders and uh multiple uh lawyers that i have worked with over the past uh year and i have had had very differing um ideas on legal precedent around i believe what she's talking about is the buffer zones that we initially had in this bill um they

[03:57:27] They have been upheld as constitutional. However, we went ahead and took it out because, you know, at the end of the day, we've got to find a compromise. And they have looked at this compromise report.

[03:57:46] I've spoken to them and worked with them. And I think we are now all in a place where we can feel better about moving forward. So that's a yes. The question is, shall the Senate adopt the conference committee report for Senate Bill 137?

[03:58:03] All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[03:58:19] Ayes 21, noes 18. Ayes 21, noes 18. The Senate adopts the conference committee report. senate bill 23 page 23 senate bill 190 senator from norfolk thank you madam president i move that the conference report be conference report be agreed to and speaking to that report senator has the floor thank you madam president the conference report for senate bill 190 reflects a collaborative compromise between the house and the senate and i would ask folks to pay close attention to this conference report because they will hear and see it again in house bill 178 when

[03:58:57] that comes back. The agreement focuses on developing a thoughtful framework for support partnerships between schools and nonprofit organizations that provide direct services to at-risk students. The report directs the Department of Education to convene a study, which is the major change in this conference report. It originally was a work group which caused some financial issues and it has been um changed to a study which we have had uh confirmation from the department of education that that will not cause any financial issues they have been directed to

[03:59:34] convene a study to develop recommendations for a program that allows student support agencies to partner with school divisions through memorandums of understanding the other piece of the

conference report that was added is that the study will examine key safeguards including non-profit verification privacy protections background checks parental consent requirements and responsible handling of student information as and as a part of what they are studying but not an all-encompassing piece it will also consider compliance oversight and potential implementation costs by taking this approach the conference report ensures that we build a structured

[04:00:13] transparent and secured framework before implementing a statewide program and with that madam president i respectfully ask that we agree to the conference report the question is shall the senate adopt the conference committee report for senate bill 190 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 39

[04:00:47] no zero ayes 39 no zero the senate adopts the conference committee report page 24 senate bill 223 senator from western henrico thank you madam president madame president i move we adopt the conference committee report speaking to that motion senator has the floor thank you madam president uh since i agree with the senator from hampton that this was like 25 years ago i'll just be brief and say uh if you want cheap energy and you want solar on my roof and not in your fields, vote yes. If you want expensive energy and solar in your fields and not on my roofs,

[04:01:23] vote no. The question is, shall the Senate adopt the conference committee report for Senate Bill 223? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 22, no 17. Ayes 22, no 17. The Senate adopts the conference committee

[04:01:55] report. Page 25, Senate Bill 226. Senator from Eastern Fairfax. Thank you, Madam President. I move to adopt the conference committee report. Speaking of that motion. Senator has the floor. Ladies gentlemen, Senate, this is the composting bill. It's the cognate to House Bill 1011, which passed this body 2119 about two hours ago. Don't feel like explaining it again. Let's hope we can pass this one like we did the house cognate the question is shall the Senate adopt the conference committee report for Senate bill 226 all in favor of that motion will record their votes aye those opposed no are the senators ready

[04:02:31] to vote of all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 22 no 17 ayes 22 no 17 the Senate adopts the conference committee report page 25 senate bill 253 senator from portsmouth senator has the floor thank you madam president madam president the conference

[04:03:09] report is very similar to the form of senate bill that passed in the senate 39-0 it makes the following changes first it moves a rate making provisions related to data centers to dominions regularly scheduled by any report in March of next year this will allow this provision to be considered along with the overall rate case. Third, and second, it clarifies the exemptions that GS-5 class for non-data center customers to fit a number of individual circumstances, for example, a potential plant expansion, an industrial project being under construction, or a very large warehouse for a brick

[04:03:48] and mortar retailer. Third, it adds the option, and I emphasize option, for the State Corporation commission to approve fuel scrutinization for the past year for dominion due to a hot summer a very cold weather and the current run-up in fuel costs due to events in the middle east this is an important option to have to minimize what would otherwise be significant fuel increase this spring with that mother president

again i move that we adopt the conference committee report the question is shall the senate adopt the conference committee report for senate bill 253 all in favor of that

[04:04:24] motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 21 nose 18 the senate adopts a conference committee report senate bill 26 page 26 senate bill 276

[04:05:01] senator from norfolk thank you madam president madam president i move that we move the conference report for senate bill 276 and speaking to that motion senator has the floor thank you madam president sent the conference report from 276 from senate bill 276 mirrors the conference report for house b 173 and after having vigorous discussion about it i move that we move it thank you the question is shall the senate adopt the conference committee report for senate bill 276 all in favor of that motion will record their votes aye those opposed no are the senators ready

[04:05:37] to vote. Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 18. Ayes 21, noes 18. The Senate adopts a conference committee report. Page 26, Senate Bill 313. Senator from Alexandria. Thank you, Madam President. I move that the Senate agree to the conference committee report and speaking to that motion. Senator has the floor. Thank you, Madam President. This is identical to House Bill 1005 that I somewhat what recently described dealing with rent payment and which passed this body

[04:06:15] 21 to 18 I move the Senate agree to the conference committee report the question is shall the Senate adopt the conference committee report for Senate bill 313 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll I was 21 nose 18 eyes 21 nose 18 the senate adopts the conference committee report page 27 senate bill 323 senator from

[04:06:51] eastern fairfax um thank you madam president i moved that's the wrong i think the wrong bill is up there we go okay madam president i um move the conference committee report and speak that motion senator has the floor thank you madam president ladies and gentlemen senate this is the ghost gun bill the uh house cognate house bill 40 passed this body about two weeks ago 21 to 19. this is is identical to that. I don't think we need to explain it again. Again, this is identical to the bill that passed 21-19 two weeks ago. The question is, shall the Senate adopt the conference committee

[04:07:29] report for Senate Bill 323? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, no's 18. Ayes 21, no's 18. The Senate adopts the conference committee report page 27 Senate bill 324 the senior senator from

[04:08:06] Prince William thank you madam president move the adoption of the conference committee report and speaking to the motion senator has the floor this is the identical cognate of the house bill we passed a little bit ago on verification of independent contractor and authorization by both state as well as the notification center if it's a local government contract that we adopted in conference and so I'd move we adopt it on a 21 to 18 vote the question is shall the Senate adopt the conference committee report for Senate bill 324 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators

[04:08:46] desire to change their vote the clerk will close the roll I was 21 knows 18 Ayes 21, Nose 18. The Senate adopts the Conference Committee report.

[04:09:02] Page 27, Senate Bill 337. Senior Senator from Loudoun. Thank you, Madam President. Madam President, I move that we adopt the Conference Committee report in speaking to that motion. Senator has the floor. Madam President, this is the identical Senate cognate to House Bill 286, the National Guard bill that we passed just a few minutes ago, 21-18.

[04:09:28] And with that, I move that we adopt the Conference Committee report. The question is, shall the Senate adopt the conference committee report for Senate Bill 337? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted?

[04:09:44] Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, no's 18. Ayes 21, no's 18. The Senate adopts the conference committee report. Page 28, Senate Bill 351.

[04:10:02] Senator from Central Fairfax. Madam President, I move that the Senate agree to the conference committee report and speak to that motion. Senator has the floor. Thank you, Madam President. We just debated on this not too long ago. This is the courthouse protection from ICE bill itself.

[04:10:20] I won't go into details. It's an identical version in the conference report. I hope we can report it out. The question is, shall the Senate adopt the conference committee report for Senate Bill 351? in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll as 21 knows 18 eyes 21 knows 18 the senate adopts the conference committee report

[04:10:56] page 28 senate bill 364 senator from eastern prince william thank you madam president madam - Madam President, ask that we adopt the committee report and speaking to that motion. - Senator has the floor. - Thank you, Madam President.

[04:11:12] This is my bill, which we voted the cognate out of here. The only change was to change it into a work group to develop policy and legislative recommendations to address firearm violence, including mass shootings, domestic violence, suicides, and homicides, so we can effectively address the crisis that we have going on.

[04:11:34] ask that we adopt the conference committee report the question is shall the Senate adopt the conference committee report for Senate bill 364 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 21 noes 18. ayes 21 noes 18 the Senate adopts the

[04:12:03] conference committee report page 30 senate bill 398 senior senator from loudon thank you madam president madam president i move that we adopt the conference committee report and speaking to that motion senator has the floor this is the neurological birth injury fund bill that i talked about a few minutes ago then this is the identical senate bill to house bill 1007 that we passed 39 zero with that i move that we adopt the conference committee report thank you madam president the question is shall the senate adopt the conference committee report for senate bill 398

[04:12:42] all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll eyes 39 no zero eyes 39 no zero the senate adopts the conference committee report page 31 Senate bill 494

senator from Charlottesville Adam president move adoption of the conference report and I'd like to speak to that please senator

[04:13:19] has the floor thank you um this is a Senate version of the higher education reform bill we passed about an hour and a half ago the senator rock from Rockingham warned those of you who wish to be governor that you might be hamstrung over the next couple of years by this bill I hope you'll we got 21 votes last time I hope we get the same 21 votes plus few more the question is shall the Senate adopt the conference committee report for Senate bill 494 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to

[04:13:58] change their vote the clerk will close the roll as 21 knows 18 eyes 21 knows 18 the Senate adopts a conference committee report. Skipping 496 on page 31, turn to Senate Bill 515 on page 31. Senator from Charlottesville. Madam President, I'm moved with

[04:14:36] some exuberance that we accept this conference report and I'd like to speak to that. Senator has the floor. Senate Bill 515 started out as a very ambitious effort to allow the sewer to take over the world. The chairman of the sewer would have had more power than just about anybody else in Virginia. But the bill before you is a trimmed back version of that bill. What this, the bill, the bill is introduced, would have, would have done away with a commission that hadn't met in five years, would have given a lot of new authority to the sewer, would have, with a renamed

[04:15:16] sewer, would have expanded membership of the sewer. It would have done so many things. This the chair would have been his excellence. All this bill does is renames the sewer the Energy Commission of Virginia. So the unfortunate part about this bill is that you will never again hear me talk about a sewer on the floor of the Senate. Please accept this conference report.

[04:15:47] The question is, shall the Senate adopt with exuberance the conference committee report For Senate Bill 515, all in favor of that motion will record their votes. Aye. Those opposed, no. Are the Senators ready to vote? Have all the Senators voted? Do any Senators desire to change their vote? The Clerk will close the roll.

[04:16:14] Ayes 22, no 17. Ayes 22, no 17. The Senate adopts the Conference Committee Report. Page 32, Senate Bill 536. Senator from Eastern Fairfax.

[04:16:34] Senator from Rockingham. Madam President, I move to adopt the conference committee report speaking to that. Senator has the floor. Madam President, this is the much-anticipated medical malpractice bill.

[04:16:51] It started out as a humble effort to make sure that in the event that a medical malpractice case took four years or five years to be resolved and a jury entered an award in excess of the cap that the cap would not cap the interest. Very technical minor adjustment. The House took that bill and ran with it and they adopted a substitute to that bill

[04:17:24] that dramatically changed the cap. Let me just say I personally I believe in the medical malpractice cap I think it serves an important purpose it protects our medical community it was adopted in order to keep doctors here in Virginia to avoid driving them out but it was adopted back in 1975 and in 1975 it adopted a cap that everybody agreed or mutually disagreed was a reasonable amount of

[04:18:03] damages. And that was $750,000. And that cap escalated periodically, annually or every couple of years. And it is scheduled to cap out at $3 million in 2030. One of the problems is that it has not kept pace with the cost of living or with inflation. Had it done so, it would be approximately eight million dollars today so there are families in Virginia who have suffered

[04:18:40] catastrophic injuries as a result of negligence and this is this is an accident nobody is suggesting that anybody is out there doing anything on purpose and you know we all get insurance to make sure not only that we protect ourselves but in the event that we hurt somebody in the event that I have a lapse of attention and run a stop sign and kill somebody, I have a personal sense of responsibility to make sure that I am doing right by the person who I have hurt.

[04:19:18] So this is an important balancing act here. The medical malpractice cap is under a lot of pressure, and I think unless we do something to address that pressure, we're at risk of losing the cap altogether.

[04:19:38] I don't think that's a good thing. I think that there is a way that we can find a way to protect doctors and our medical community and make sure that we're not driving them out of Virginia, but also protect people who are the victims of medical malpractice, who may have millions of dollars in a life care plan who may be permanently disabled and unable to support their families.

[04:20:10] These are people we owe a sense of responsibility to. And it's a very small number of cases. But those cases have real consequences on real people. We rejected the House amendments.

[04:20:26] But the problem persists and we have asked a group of stakeholders to meet over the course of the next year to see whether there's a possibility that we can reach an agreement to address this pressing issue.

[04:20:45] And in the meantime, this conference report requires a list of reporting obligations by hospitals and healthcare providers, by insurance companies, so that we can use objective data to look and see what the real facts are, see how many cases this would impact by raising the cap or changing the cap or making adjustments to the cap or doing away with it, to see whether

[04:21:20] doctors and medical practices are getting a fair deal from insurance companies as well. So this is a informational conference report. So next year, hopefully we won't have to address this.

[04:21:36] Hopefully the stakeholders will have gotten together and found a way to link arms and achieve both of these important goals and purposes. If not, then we're going to have information in our hands so that we can make an assessment all together, looking at the same information about this issue, and that disclosure requirement is going to continue until we fix this challenge, this issue, until the cap is resolved.

[04:22:09] And let me tell you, using a sports analogy, this is a little bit like free agency in the NFL. I don't know where my NFL player went, but we're about to enter free agency.

[04:22:25] 2030 is right around the corner when this cap caps out and you know now is the time to make a deal the closer we get to having that cap top out uh the harder it's going to be to get the parties together and and fix this i i think that this is a good solution i hope we will adopt this and i hope that next year we'll be able to come with a consensus approach

[04:22:55] and a deal and uh put this to bed for the next 30 years the chair recognizes the senator from arlington thank you madam president madam president i rise to speak to the conference report senator

has the floor thank you madam president i would encourage my colleagues to vote for the conference report this has come a long way i want to say that previously every version of senate

[04:23:28] bill 536 that i had seen in this body or in a committee i had voted no but the conference report actually requires the analysis and lead legwork necessary to truly understand what is going on in the medical malpractice world what kind of awards are actually being awarded and what does the insurance industry look like when we're talking about the need to actually keep our providers insured and hospitals insured so it's a complex issue you can't go at

[04:24:05] it easily but I am really I have some comfort and I think intellectually I think it's the right thing to do to have this study I applaud the conferees for putting in a September 1st 2026 a report date which is pretty early it'll It will give us plenty of time to review the data, to see what we want to do next session.

[04:24:29] And I just want to give my congratulations to the conferees and to the senator from Rockingham for listening to all the concerns. Thank you, Madam President. The junior senator from Loudoun. Thank you, Madam President.

[04:24:45] Speaking to the bill briefly. Senator has the floor. Thank you, Madam President. I just want to say that this is the right step. It's a strong step. It's the right step. is key. I've talked to several doctors in the last several days. Small and medium-sized doctors were rightfully very concerned and I think this will throw light and get credible data from different insurance companies and also claim data and loss ratios which are critical for the future and hopefully like this senator from Rockingham said that the stakeholders will be able to sit

[04:25:22] possession and come up with a fair arrangement but transparency would be key and this conference report will achieve it I hope I and I urge my colleagues to support this conference report thank you madam president senator from Western Prince William thank you madam chair will the senator from Rockham yield for a question will the senator yield yes I yield senator from Prince William thank you madam president madam president I would ask the senator in lines 56 to 60 there's a FOIA exemption where it says the The disclosures and information submitted to the chairs of the House and Senate committees for courts of justice and to the ranking delegate and senator of the minority party serving

[04:26:00] on such committees pursuant to this section shall be confidential and shall be exempt from disclosure under the Virginia Freedom of Information Act except in the aggregate form and shall not identify any individual physician, hospital, insurer, patient or specific claim. The question to the senator is, I respect the idea of us trying to get to more transparency, But how does that reconcile with a FOIA exemption that is inherently not transparent?

[04:26:27] Because it seems to me, Madam President, that information that is being sent to the chair and to the ranking member should be made available to the public. Senator from Rockingham. Madam Chair, I thank the Senator for the question.

[04:26:44] The answer to that question is that ideally we would have had this information disclosed to the Insurance Bureau at the State Corporation Commission, however, it might have run into a budget issue.

[04:27:04] We do hope that maybe the Governor will look at that. The reason it is not simply open for public review is that it was at the request of the disclosures because there is confidential and proprietary information that their competitors are not entitled to and it is the intention of this bill to make available the aggregated information that is has the identifying

[04:27:42] information taken off of that but it is critical that that information be provided and it is not appropriate for the chair or anybody on the courts committee to disseminate the non-anonymized un-aggregated information to what the to the public. Madam President would the senator yield for one final question? Will the senator yield? Yes of course. Senator from Prince William. Thank you Madam President. Madam President first I just want to express appreciation for

[04:28:18] response on that, but the response also, Madam President, raises another point with that, which is there's nothing in the bill that explicitly prohibits the chair of, either the court's chairs or the court's ranking members from disseminating that information, which means that, Madam Chair, is it the opinion of the patron then that that could, that there in fact could be selective leaks into whoever is so chosen from the general public, but the general public as a whole won't have that access to information unless they have that access to those members who happen to be either chair or ranking

[04:28:56] member of those committees. Senator from Rockingham. Madam President, the chair and the ranking member of the committees on the House and the Senate side are all attorneys very familiar with the obligations of confidentiality which is not just a statutory but a professional obligation. We have that responsibility of confidentiality imposed in other contexts as well. We receive on a regular basis reports from the judiciary

[04:29:32] in connection with disciplinary matters involving judges, involving personal financial disclosures of judicial candidates involving judicial performance evaluations, all of which are designated as confidential, and to the best of my knowledge, all of the members of the courts committee have honored those obligations, and I have no reason to believe that those upon whom these obligations have been imposed in this conference report will do anything different from honor the obligations of confidentiality imposed herein.

[04:30:12] Madam President, speaking to the bill. Senator has the floor. Madam President, first, thank you to the Senator from Rockingham for the explanation. And I understand the idea that the Senator is getting at, which is basically that under basic professionalism, information that's not supposed to get out won't get out.

[04:30:29] The larger, I have just multiple issues with the entire predicate of this, though. Number one on this is that every time we have another FOIA exemption, we are continually telling, especially the business class when we're dealing with proprietary information, that that is more important for us to protect on their behalf than it is for the public to have the right to public information that their tax dollars pay for.

[04:31:00] and the information that goes in front of the Courts of Justice Committee or any other committee, that's inherently public. And so this is, I don't want, Madam President, I don't mean to make an example out of this bill because I've been the only red light on a number of other bills that include FOIA exemptions and I can't get them all. I try to catch up with as many as I can.

[04:31:21] Some of them slip past. And at the same time, I got to put up a red line on this one just like I've done repeatedly for a lot of these other ones because the Freedom of Information Act is not supposed to be something where every single year we look at what's another hole that we can poke into it as opposed to what can we do to strengthen public access to public information.

[04:31:44] And Madam President, the final thing I'll say on this is some of us have worked for years on that very issue and we keep running into roadblocks. Fortunately, the Senate was not that roadblocked this

year. But at some point, sometime, someone, somewhere has got to treat the Freedom of Information Act with the importance that it deserves. It does not deserve to continually be turned into a sieve. We have got to treat this thing as what it is, which is the most essential tool that the public has to hold its elected officials and the non-elected officials who

[04:32:24] were supposed to be serving them accountable. Thank you, Madam President. Senator from Rockingham. Madam President, I'll be brief. There is no blanket FOIA exemption in this bill. This bill, or the conference report, requires disclosure of the aggregated information once the confidential and proprietary information is removed.

[04:32:49] It's important to understand and to remember that these are hospitals who are making these disclosures. hospitals in some instances who are self-insured who are competing with neighboring hospitals. It would be very damaging to these hospitals in our communities to have to make those disclosures. This is to help us make better policy decisions over the next couple of years. It also involves insurance companies who are involved in competition in the marketplace. We

[04:33:26] We enter into MOUs with companies that disclose proprietary information, and I suspect some here would very much like to see those. But this is not giving away tax dollars.

[04:33:44] This is simply helping us to make a better decision next year. And I think this is a very good compromise, especially given where this had gone and what the perspective outcomes could have been for folks on either side.

[04:34:03] So I would hope that we would adopt this compromise. The question is, shall the Senate adopt the conference committee report for Senate Bill 536? All in favor of that motion will record their votes aye.

[04:34:19] Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[04:34:37] Ayes 37, noes 2. Ayes 37, noes 2. The Senate adopts the conference committee report. Page 34, Senate Bill 543.

[04:34:57] Senator from Eastern Henrico. Thank you, Madam President. I move adoption of the conference committee reports, and speaking to that motion. Senator has the floor. Thank you, Madam President. Senate bill 543 is the enforcement legislation regarding the adult use cannabis retail marketplace. Uh, and as you know, we've been making changes to this, um, and we have finally made the final changes to ensure that it's in alignment with the legislation we passed last night. So there are a few revisions, um, in additions to the, to the legislation, specifically, um, provisions governing the assessment of civil penalties,

[04:35:34] basically making sure that manufacturers and sellers of certain industrial hemp extracts and foods containing industrial hemp extracts that they can take consideration into the first violation related to labeling or packaging requirements. So as to say on that first violation they'll be giving at least 15 days to possibly cure all the violation that occurred but only for that first violation only and essentially that no civil penalty will be assessed if the violation occurred and they are able to rectify it within those 15 days. We also provide that for labeling and

[04:36:09] packaging violations that are attributed to the manufacturer specifically that we won't assess a civil penalty against a retailer again for that first violation when especially it's in regard to the

manufacturer and then further we clarify that a person issued a notice of violation in order to cease unlicensed marijuana activity that they do have an appeals process in accordance with the Administrative Process Act. We add a prohibited practice under the Virginia Consumer Protection Act for selling or offering the sale of a substance intended for human consumption,

[04:36:46] whether that's orally or by inhalation, that contains more than 0.3% THC and contains more than two milligrams of THC per package and then lastly madam president we expand the enforcement work group to add health professionals and with that I hope we can move this forward the question is shall the Senate adopt the conference committee report for Senate bill 543 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote of all the senators voted do any senators desire to change their vote

[04:37:25] the clerk will close the roll. Ayes 22, noes 17. Ayes 22, noes 17. The Senate adopts the conference committee report. Senator from Eastern Fairfax. Madam President, I move that we waive the reading of the communication from the House. The question is, shall the Senate waive the

[04:38:00] communications from the House? All in favor of waiving the reading of the communications from the House of Delegates will record their votes, aye. Those opposed, no. Are the senators ready to vote. Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 32, noes 7. Ayes 32, noes 7. The Senate waives the reading of the House communications. Senator from Eastern Fairfax. Madam

[04:38:35] President, do I need to make two more motions? There we go. Madam President, I would move that we accede to the request for a second committee conference for House Bill 1263. I'm speaking to that motion. Senator has the floor. We're just going to need a second committee conference here to make one change to the conference report before we vote it. I would hope we get adopted. The question is, shall the Senate accede to a second conference committee report for House Bill 1263? All in favor of that motion will record their

[04:39:09] votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senator's desire to change their vote. The clerk will close the roll. Ayes 21, Nose 18.

[04:39:25] Ayes 21, Nose 18. The Senate accedes to a second conference committee report. Conferees on the part of the Senate is named by the Chair of Commerce and Labor, Senator Deeds, or Senators Surveille, Boyce Goe, and Stewart. Senator from Eastern Fairfax.

[04:39:45] Madam President, I move that we accede to the second committee of conference request for Senate Bill 378. The question is, shall the Senate accede to the request for a second conference committee report for Senate Bill 378? All in favor of that motion will record their votes aye.

[04:40:02] Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 18. Ayes 21, noes 18.

[04:40:19] The Senate accedes. Conferees on the part of the Senate is named by the Chair of Commerce and Labor, Senator Deeds, or Senator Surveille, Boyce Co., and Stewart. Returning to page 34, Senate Bill 553.

[04:40:42] Junior Senator from Loudoun. Thank you, Madam President. I move that we adopt the conference report and speaking to that motion. Senator has the floor. Thank you, Madam President. This

is the conference report for my Senate Bill 553 that deals with transparency and reporting around water usage for high consumption users like data centers.

[04:41:01] It's identical to the conference report for House Bill 496 that we just passed earlier this afternoon on a vote of 26 to 13. Having spoken previously about what this bill does as it relates to providing transparency and reporting on usage by the water utilities, I once again move that the Senate pass the conference report for Senate Bill 553.

[04:41:25] Thank you, Madam President. The question is, shall the Senate adopt the conference committee report for Senate Bill 553? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted?

[04:41:41] Do any senators desire to change their vote? The clerk will close the roll. Ayes 25, noes 14. Ayes 25, noes 14. The Senate adopts the conference committee report.

[04:42:04] Page 36, Senate Bill 643. Senator from Eastern Fairfax. Thank you, Madam President.

[04:42:20] I move that we adopt the conference committee report and speak to that motion. Senator has the floor. Thank you, Madam President. Ladies and gentlemen, Senate, this bill is the bill that has to do with firearms for minors.

[04:42:37] And the House and our bill had a few differences, which we reconciled. Basically, what the bill does now, it's basically it's unlawful for anyone under the age of 21 to knowingly and intentionally purchase a handgun or assault firearms that's still the same however the exceptions on possession changed the way this reads now um somebody um under the age of uh um under the age of 21 can possess a firearm if they're present in their home assault website

[04:43:14] assault weapon or handgun if they're present in their home or the home of their parent grandparent legal guardian and possessing the firearm with the consent of such person, if they are present at a shooting range with someone at least 21, if they're accompanied by somebody 21 engaged in hunting, if they're training or carrying out duties as a law enforcement officer, member of the armed force of the United States, the National Guard, or if they're a cadet at VMI or with Virginia Tech, or if they're working for the Virginia State Police, or if they're an active law enforcement

[04:43:51] officer. That's what the bill does. It's slightly different than the bill we passed. I hope we pass the bill. Senator from King George. Madam President, would the senator yield for a question? Will the senator yield? Senator from King George. President, I read this really quickly, but as I read the bill and I'd ask the senator to confirm, I see where there's a carve out for members of law enforcement and those in the service if they're training.

[04:44:24] But if I understand this correctly, if a 19-year-old that is in the United States Marine Corps, having been trained by the finest fighting force in the entire world, was on leave, that person could not possess their .45 or whatever they fire these days.

[04:44:43] Senator from Eastern Fairfax. Madam President, I believe that's accurate the way it's written. thank you madam president the senior senator from Virginia Beach thank matter president will the gentleman I'm sorry will the senator from Eastern Fairfax rise for a question well the senator yield oh you senator from Virginia Beach madam president I'm still going through this but I'd like to ask the gentleman if a JROTC individual with a high school or a private

[04:45:21] military high school were to issue a gun to one of their individuals would they be in violation under this senator from Fairfax if the person's under the age of 21 and they're not accompanied by a person over the age of 21 and they are not present at a lawful shooting range or firearm educational class present Hunting, or President Hunting, then yes, they would be in violation.

[04:45:58] Madam President, would the gentleman yield for one additional question? Will you yield, Senator? Senator from Virginia Beach. So, Madam President, so if they're in their barracks of a private high school, military high school, or a JROTC, if they're in their classroom and they're cleaning their weapon, they would not be allowed under this, or they'd be in violation of this, is that correct?

[04:46:23] senator from Fairfax if they are under the age of 21 and in their barracks and they're not in the and then yeah yeah because they would be they would be not that would be their home and if they're JROTC they are allowed to possess it whether participating in training competitive or ceremonial activities so if the cleaning of a gun or whatever is part of their training competitive ceremonial activities then they would be allowed to possess it. Thank you Madam

[04:47:03] President. The question is, shall the Senate adopt the conference committee report for Senate Bill 6? Madam President, I apologize, may I speak to this briefly? The senator has the floor. Madam President, I hope we won't do this. There are so many of us in here that represent areas with military bases and service members and the senator from Eastern Fairfax answered my question. So please Please understand that if you are in the United States military, you can go in at 18, and

[04:47:39] they give you the best training that any military gives in the entire world. But yet if you're at home on leave and you have your service weapon, you now are a criminal, you therefore would be kicked out of the military. And that's a fact.

[04:47:55] So please don't vote for this bill. The Senator from Orange. Madam President, speaking to the bill. Senator has the floor. Madam President, as the Chairman of the General Assembly Military Veterans Caucus, we've been trying to be veteran friendly for I don't know how many years to keep our veterans here.

[04:48:13] Madam President, this is just a piece of legislation that could tell me I'm not wanted. I think the Senator from King George is exactly right. My son went through ROTC at 18. He was issued a weapon while in school.

[04:48:30] They had to tie, not tie, but fix it to their bunks, but they had to have it with them most of the time. Texas is a different state than here, of course, but, Madam President, the weapon systems to which they train on, go to the range on, is now considered an assault weapon here.

[04:48:51] They're very comfortable with it. They know how to break it down. They can do it with their eyes closed. They can do it in the middle of the night. They can do it when you shake it all up in a footlocker, but what we're doing is we're We're just telling these young soldiers, sailors, airmen, and Marines that it's okay for you to go overseas and die for your country, but you can't come back here and possess those same weapons to protect your freedoms or go sport hunting or whatever you like to do in your spare time.

[04:49:15] And we give an awful lot of freedom to 18-year-olds to do the ultimate sacrifice, but we're not willing to give them the same freedoms. I would plea, like my colleague from King George, please don't do this. from Eastern Fairfax. Thank you, Madam President, if no else desires to speak. Senator has the floor.

[04:49:38] Thank you, Madam President. I want to remind everybody, the bill specifically allows anyone who's a member of the Armed Forces of the United States and the National Guard, while engaged in official training or carrying on their duties as a law enforcement officer or as a member of the Armed Forces, that they're allowed to possess a handgun or an assault rifle. This does not apply to hunting rifles, shotguns, you can possess that between 18 and 21 all day long, anywhere you like,

[04:50:12] any room you want, etc. This has to do with handguns and assault rifles. And we have to put this restriction in place for purchase because right now Virginia State Police is prohibited by court order from conducting background checks for individuals between the age of 18 and 21 because of a lawsuit in Lynchburg. And we don't pass this. There will continue to be no background checks for private sales in Virginia for anybody between the ages of 18 and 21, which is a great way to go get a gun, if you're not otherwise eligible, to buy one.

[04:50:47] Madam President, I hope we get passed the bill. Senator, you were the last speaker, but now Senator from King George wishes to speak. And Madam President, I apologize for trespassing on everybody's time, but this is a simple thing.

[04:51:05] I'm not talking about an assault weapon. Take the assault weapon out of the equation, leave it in the bill. I'm talking about is a service weapon issued to a 19-year-old Marine that if he goes home on leave and has it in his possession he now is guilty of a crime in the state of Virginia once he's convicted of that crime he's gonna get kicked out of the military we shouldn't do that if you're gonna if you insist on a policy like this then carve out active-duty military who take their service weapons home. If for no other reason than to make sure somebody doesn't steal it because

[04:51:43] they leave it at the barracks. Seeing no other senators who wish to speak, the question is, shall the Senate adopt the conference committee report for Senate Bill 643? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 21,

[04:52:23] noes 18. Ayes 21, noes 18. The Senate adopts the conference committee report. Page 36, Senate Bill 645. Senator from Eastern Fairfax. Madam President, may we adopt the conference committee report and speak of that motion? Senator has the floor. Thank you, Madam President. Ladies gentlemen Senate Senate bill 645 is the cognate to kind of this doesn't have a cognate sorry this this bill has to do with anaerobic digestion and the only thing the Congress committee did differently from the bill that passed was

[04:53:00] it made it clear that Arlington County needs to participate in a work group before it was written in a way that it intended to pick up Arlington but didn't Arlington wants to be part of the work group. It's basically is asking the Northern Virginia localities to look into doing anaerobic digestion as part of processing municipal waste. I hope we can pass the conference report. Madam President, would the Senator yield for a question? Will the senator yield? I'll yield. Senator from Hanover. Thank you Madam President. Because there were nobody from my side of the aisle on this

[04:53:38] conference report, I just want to ask a few questions. There's the facility that is referenced in lines 27 through 32 what kind of waste does that produce now and is it in current compliance with the the SIA requirements? Senator from Fairfax. Okay I just pulled up the bill the senator could repeat his question now that I got the bill up with line numbers I'd be happy to try and address that question. What were the line numbers Senator? It was 27 through 32. Okay thank

[04:54:13] president that facility doesn't exist the idea is that the locality could potentially build a facility that would meet that threshold but right now there's an incinerator in Fairfax County that produces over a hundred megawatts burning trash the idea out of this is you could take part of the trash you could take the organic waste out of the waste stream and use it to create methane and then use that methane to make electricity and that would be less

[04:54:48] than 100 megawatts so it hasn't the facility doesn't exist this is trying to facilitate to make it possible possible to build a facility like this which would get more waste out of the waste stream instead of burning we'd make biogas with it. Madam President would the senator yield for additional question? Will the senator yield? Senator from Hanover. Madam President ask the senator is the other facility that he references in compliance with VSEA currently? Senator

[04:55:21] from Eastern Fairfax sort of so the the current incinerator in Fairfax is of a certain size that it's possible that regulations could be issued by DEQ via the Air Board that could create issues for but those regulations have never been issued so right now it's in complete compliance it's just in the future

[04:55:56] there's a possibility if regs got adopted they were hostile to it that it might not be that's my understanding madam president one final question will the senator yield senator from hanover madam president i recall that there was another piece of legislation that would have exempted that and or this facility from some of the requirements that are currently in place is my recollection accurate on that and how does this bill impact that other bill senator from

[04:56:30] Eastern Fairfax. President, that was originally this bill and that got taken out because people didn't think it was necessary anymore. And so, but it was originally some language in here that that exempted it from all that, but that was removed. Exempted it from the regulations that haven't been adopted yet, but that was removed. Madam President, to spur one more question.

[04:57:04] Will the senator yield? Senator from Hanover. Madam President, ask the gentleman, so if we, if this bill passes becomes law, then that means that this project, regardless of whether it meets other requirements of VSEA, would be determined to be renewable, period, as a matter of law, and it doesn't have to meet the other requirements. Is that accurate?

[04:57:28] Senator from Fairfax. I don't think so. My understanding as to what this bill does is there's an alternate expedited permitting process for small smaller projects and right now anaerobic technology is not included in that expedited permitting process and so this makes it possible for a much faster permitting process for anaerobic

[04:58:01] digestion I'm not sure that means it's qualified as exempt from the VCEA because of that that didn't come up in the conversation at all my understanding was the whole point of this was to make it easier to permit so you don't have to go through the super long permitting process that other large electrical projects have to go through. Thanks the gentleman. The question is shall the Senate adopt the conference committee report for Senate

[04:58:37] Bill 645? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 22, no 17. Ayes 22, no 17. The Senate adopts the Conference Committee Report. Page 40, Senate Bill 783. Senator from Central Fairfax. Madam President, I move that the

[04:59:15] Senate agree to the Conference Committee Report and speaking to that motion. Senator has the floor. Madam President, this is the 287G and other agreements with ICE Bill which we debated. um we could do the same thing for another hour but i hope we all remember um folks on this side would need to vote green folks on the other side if you have a change of heart please vote green and i hope that we adopt the conference report the question is shall the senate adopt the conference committee report for senate bill 783 all in favor of that motion will record

[04:59:49] their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 21 noes 18. Ayes 21 noes 18. The Senate adopts the conference committee report. Page 40 Senate bill 827. Senator, junior senator from Loudoun. Thank you Madam President. I move that we adopt the conference report and speaking to that motion. Senator has the floor. Thank you Madam President. This is the

[05:00:26] conference report for my senate bill 827 which relates to the pilot programs for undergrounding high voltage transmission lines it is identical to the conference report for house bill 1487 which we just passed earlier this afternoon in a bipartisan 2811 vote having spoken previously about how this legislation creates a flexible and collaborative framework for our localities to protect their communities while ensuring our infrastructure needs are met i once again move that the senate adopt the conference report for senate bill 827 thank you madam president the

[05:01:03] question is shall the senate adopt the conference committee report for senate bill 827 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll.

[05:01:22] 28, no's 11. Ayes 28, no's 11. The Senate adopts the conference committee report. Returning to page 4, House Bill 178. The senator from Norfolk. Thank you, Madam President. Madam President, I move that the conference report for House Bill 178 be accepted and speaking to that

[05:02:00] motion senator has the floor thank you madam president having explained house bill 17 i'm sorry having explained the conference report to senate bill 190 house bill 178 is its companion and i move that with that explanation we accept the conference report for house bill 178. the question is shall the senate adopt the conference committee report for house bill 178 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have

[05:02:32] all the senators voted do any senators desire to change their vote the clerk will close the roll eyes 39 no zero eyes 39 no zero the senate adopts the conference committee report on page six has

[05:02:55] bill 285 page 12 has bill 930 senator from Eastern Fairfax senator from Eastern Fairfax thank you madam president I move that go by temporarily

[05:03:19] without objection I'll spell 930 goes by temporarily on page 16 has bill 1263 well the Senate senator make the same motion again yes madam president may

[05:03:52] that go by temporarily. Without objection House Bill 1263 goes by temporarily. The

[05:04:04] Senate will be at ease. It will return to order. On page two, second conference

[05:27:18] committee report on House Bill 110. The senior senator from Fairfax. Thank you Madam President. I move that we concur with the second conference report and speaking to that. Senator has the

floor. Thank you so much. We certainly heard the concerns from the body we we step back to the second committee of conference

[05:27:54] and we've taken all of the language out about Capitol Square and any any privilege to members on the issue of maintaining firearms in their vehicles in the garage things are just as they were and the bill is now pretty much the way it was this is the house version but it's pretty much the Senate version 496 that we'll vote on later and it will you know that it came out of this body and what it requires is that when you're in an unattended vehicle on a public street or a place where the public can park

[05:28:30] or employees can park and what have you it excludes private property from being discussed as an area where you can enforce it and it is a you can leave it in a leave a handgun in a locked center console locked glove compartment or a separate container out of sight and affixed permanently to the vehicle by three methods and so the bill is back is the way it came out of the the Senate and I urge you to concur with the conference report the senator from Rockingham madam president speaking to do the

[05:29:09] conference report senator has the floor madam president let there be no mistake our concerns are not about the exception that was granted to the members of the General Assembly in the last version our concern was that that exception exposes the hypocrisy of this bill this bill is not good for us it is not good for the people of the Commonwealth of Virginia it does not allow people who are subject

[05:29:43] to who were victims of domestic violence or otherwise at risk to protect themselves this is not good for us it's not good for the Commonwealth of Virginia and the exception that was attached to it shows that I'd ask you to vote no the senator from King George um madam president I was just curious where we might find that second report I'm unable to pull it up the the original report

[05:30:16] comes up on my iPad under the conference report and it still includes the exception that general

[05:30:24] assembly members can do it when nobody else in the commonwealth can do any other senators wish

[05:31:08] to speak the question is shall the senate adopt the conference committee report for house bill 112 110 all in favor of that motion will record their votes aye those opposed no are the senators ready to speak. Vote. Some of y'all have spoken too much today. The clerk will close the roll. Ayes 21, noes 18. Ayes 21, noes 18. The Senate adopts the

[05:31:46] conference committee report. Page 5 has Bill 238. Senator from Eastern Fairfax. Thank you, Madam President. I move that we adopt the conference committee report and speak to that motion. Senator has the floor. Thank you, Madam President. Ladies gentlemen, Senate, this is the cognate to Senate Bill 644. It includes everything except retaliation. Basically, what this bill does is it attempts to sort of harmonize and make consistent all the different types of actions that can be brought involved regarding employee

[05:32:24] compensation. How to do with wage payment, minimum wage, worker misclassification, prevailing wage, and prevailing wage. A lot of change has been made to this bill since it was first introduced.

[05:32:42] First of all, we conform the definition of employer to the same exact definition that's in the Fair Labor Standards Act, which is federal law, which everybody ought to be okay with. The bill also, when it

comes to wage payment and enforcement, modifies the criminal provision to change the mens reyes standard instead of having to have an intent to be willful and with the intent of a fraud, a violation can either be willful or with the intent of a fraud.

[05:33:10] It expands the authority of the Commissioner of Labor and the Attorney General to investigate and enforce different types of employee violations for wage theft, misclassification, minimum wage, and prevailing wage. It also alters the liability for general contractors.

[05:33:35] You all might recall in 2020, we passed legislation that created liability for subcontractors not paying their employees or misclassifying their employees. We create a special process. This bill gets rid of that process, but substitutes that if an employer acts in good faith, they have a defense if either their subcontractor or their sub-subcontractor fails to follow the law.

[05:34:05] The bill also, again, clarifies the definition of an employer for worker misclassification. It changes the remedies from discretionary to mandatory if a violation is found with regard to a misclassified worker.

[05:34:24] Misclassified workers are people that should be classified as employees, but instead are classified as independent contractors. The bill also adopts prevailing wage language, which I believe the junior center from Virginia Beach carried a similar bill, which I think this pretty much parallels. And then it makes the remedies for the violations of prevailing wage, misclassification, prevailing wage,

[05:34:57] all consistent remedies. So they all fall under section 40.1, 29.2, I believe. That's a rough outline of what the bill does. It does a lot of things, but it basically ensures that our workers, when they're not paid consistent with the law have the ability to enforce their rights and to ensure that either the commissioner of Dolly or the attorney general also can participate if the employee is unable to enforce these rights on their own. Hope we can pass the bill. The chair recognizes the senator from Rockingham. Madam President speaking to the bill. Senator has the

[05:35:37] floor. I think there are probably a handful of people in here who remember Johnny Carson. Karnak, the Magnificent. No. Has the senator from Eastern Fairfax completed his last draft of this bill?

[05:36:00] I'm not so confident. I don't know. This bill has continued to change, and it is hard to keep up with the changes that are made. I know that the business community has deep concerns about this bill. I am not confident at all that the remedies provisions of this bill are as intended. I know that there was great concern about inconsistencies in the

[05:36:35] remedy provision that may allow multiples of damages that were not intended. Some question is whether it allows treble or quadruple damages. It It did eliminate blacklisting as a prohibition, but it has reinstatement as a remedy that is available which undermines the ability of companies to sever relationships with employees in a way that makes sense for the company.

[05:37:09] They will do that and the company may still be able to be sued for reinstatement in addition to damages, I would respectfully submit that this bill probably ought to go back to conference again, or drift out to sea.

[05:37:30] It would be my hope that we'd vote no. The Senator from King George. Thank you, Madam President. Speaking to the conference committee report. The Senator has the floor. The Senator from Rockingham talked about a few of these things.

[05:37:45] really worries me about this is this creates potential criminal liability for a contractor that has no privity of contract with workers that work for a subcontractor and the senator from eastern fairfax acknowledged that but he said it can create an exemption for good faith but what that really means is this you can lodge an anonymous complaint by an employee anonymously

[05:38:22] for an employee of a subcontractor two or three times removed from a general contractor criminal charges can be brought against that contractor and then he's got to prove his innocence in a court of law now it's funny to me because i heard a whole lot of talk about how we were going to run the data center industry out of Virginia. This doesn't run every business out of Virginia. I don't know what will. And if they weren't thinking about going somewhere else they will now. I hope

[05:38:59] we don't pass this. Senator from Hanover. Madam President, speaking to the bill briefly. Senator has the floor. I don't want to pile on to what the Senator from King George and Senator from Rockingham articulated, but just think about it this way. This bill now changed the legal standard to willful. That means that you do something. So if you make the decision not to issue a paycheck or not to issue compensation or don't do it, that's a willful choice. And Madam President,

[05:39:38] this creates strict liability. That means if the subcontractor is owed any money and the general contractor doesn't pay it, then they're criminally liable. Not just civilly liable, but criminally liable. And Madam President, and those claims can come from anywhere, including their competitors, because they can be anonymous complaints lodged, not by somebody that has any actual knowledge. So Madam President, I think the senator from King George is right, but I think it's probably worse

[05:40:17] than what he said. That there are going to be people that are trying to do the right thing, think they're doing the right thing, and are going to get charged criminally as a result of this act. The Senator from Eastern Fairfax. Thank you Madam President, speaking to the bill. Right now nobody does, Senator. Please don't provoke them into responding further. Try my best. Okay, so Madam President, a couple things. First of all, there were about, there were some edits made this morning to this bill that dealt with some of the issues I I think you heard raised.

[05:40:56] Number one, with regard to this bill, on the misclassification piece, there was a concern that there was double remedies. And we struck the language in the misclassification statute to ensure that there is only one cause of action that can be brought and one piece of damage is going to be brought.

[05:41:19] There was also a concern raised that the definition of wages was too broad because it included severance pay, accrued vacation, or sick leave pay. If somebody wants to sue, that was removed from the bill. So the only types of wages you can sue for are your hourly rates, your salaries, overtime, and legally required commissions or tips or bonuses.

[05:41:42] Those edits were made. And there were some other edits that were made to the retaliation provision, which is not in House Bill 238. With regard to the standard you heard, remember, criminal liability only applies if they can show either a willful violation or an intent to defraud. I would hope we can agree that if somebody is intending to defraud an employee that there ought to be criminal liability on that. Will the senator yield for a question? Will the senator yield? Senator from Hanover. Thank you

[05:42:18] madam president. Ask the gentleman should go through this on lines 458 it It says no employer, which includes a general contractor, somebody that might not have direct relationship with the subcontractor, shall withhold any part of wages.

[05:42:35] And then it creates the criminal liability. So where in that portion of it, if they withhold it, where's the exception for them to withhold it in good faith or because they didn't think they owed it or because they thought the subcontractor paid it?

[05:42:55] Where, if they actually withhold it, where's the ability for them not to be charged criminally? Senator from Fairfax. Madam President, the language in order to find, which lines is the Senator looking at?

[05:43:14] 458? I think that's where it started.

[05:43:29] Can the Senator from Hanover repeat the lines? Madam President, it's that whole code section, 458 down through and then it goes 483, says no employer shall withhold and then on 43 it says an employer who willfully. Okay well I'm on my line 458 I'm seeing the good faith defense but I will say to the senator that the senator being an attorney I'm sure knows that there are different mens reyes that that can apply in a legal context

[05:44:07] in a civil context. Purposefully was when somebody has the conscious object to engage in certain conduct knowingly is when they know exactly what their conduct is that's a certain nature it's practically certain something's gonna happen recklessly is when they have a conscious disregard of a of a substantial unjustifiable risk and then negligently is the very bottom when you make a mistake so in order for something to be willful you have to know what you're doing you have to know that you're withholding wages when you shouldn't be but you do it just because you want to basically so knowingly is a pretty high burden of proof that has to

[05:44:44] met you basically have to be know you're breaking the law or you have to have the intent of fraud either of those things either of those things should generate criminal liability if somebody's trying to not pay somebody money that they that they that they know they should pay they they're not paying somebody minimum wage they know they should be paying when they misclassify when they know they shouldn't be misclassifying when they know them and again there's a good faith defense madam president just speaking to the well after the senator speaks senator from eastern fairfax

[05:45:20] may conclude his comments. I was actually going to get into exactly that and lay out the burdens, and I've laid those out. I would hope we could pass the bill. Does the Senator from Hanover wish to speak? Just briefly, Madam President. Senator has the floor. Madam President, I think this is what many of us think is a problem on that 483. The standard was, or typically when you think about larceny, when you go to prove larceny, you have to have the intent to take something from somebody. So if you picked up something that was somebody

[05:45:58] else's and you didn't have the intent to permanently deprive them of it, you're not guilty of larceny. In this case, the willfulness is not paying. It doesn't have to be the intent to not pay it. It's just the actual, it doesn't happen. So Madam President, I understand what the Senator is saying. I think that this creates a strict liability, I disagree with his conclusions, that people are going to be subject to criminal ramifications because of the wording of this bill. I think we should all have grave

[05:46:35] concerns because it's just paying wages and the definition of wages is pretty extensive, including tips, commissions, bonuses, other items. And so if you miscounted the tips and you gave somebody less than what they were, and you didn't give them that money, you willfully gave them less, I think that people are going to be able to be criminally prosecuted.

[05:47:06] Seeing no other senators who wish to speak, the question is, shall the Senate adopt the conference committee report for House Bill 238. All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk

[05:47:38] will close the roll. Ayes 20, noes 19. Ayes 20, noes 19. The Senate adopts the conference committee report. Page 7, House Bill 429. Senator from Eastern Fairfax. Thank you, Madam President. Move we adopt the conference report and speak to that motion.

[05:48:01] Senator has the floor. Thank you, Madam President. Ladies and gentlemen, the Senate, the only thing this bill does is just different than the bill we passed. It actually removes the enactment clause regarding a cooperative, a work group with cooperatives, because that was covered by a different bill carried by a different delegate. So this bill is actually less in it than the bill we already voted for it hope we can adopt it the question is shall the Senate adopt the conference committee report for Senate bill for House bill 429 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to

[05:48:39] change their vote the clerk will close the roll as 21 knows 18 eyes 21 knows 18 the Senate adopts the conference committee report page 8 house bill 443 the senior senator from Loudoun thank you madam president madam president I move that we adopt the conference committee report and speaking to that motion senator has the floor so this is a version of the judge bill that is

[05:49:18] similar to the bill that left the Senate in that we are adding judges to the 12 15 26 20th and 27th district but this bill also adds uh four judges to the court of appeals and changes the en banc procedure uh in the court of appeals madam president and with that i move that we adopt the conference committee report the question is shall the senate adopt the conference committee report for house bill 443 all in favor of that motion will record their votes i those

[05:49:52] opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll as 22 no 17 eyes 22 no 17 the senate adopts the conference committee report page 8 has bill 549 second committee of conference the senator from central fairfax thank you madam president i move that the senate agree to the second commit conference committee report and speaking to that motion the senator has the floor

[05:50:30] thank you madam president um house bill 4 549 expands the authority allowing virginia localities for tree preservation and replacement during land development the key part about this is that it grants any localities the power to adopt tree canopy ordinances along with prioritizing preserving existing healthy trees over planting new ones uh the important part about this bill specifically is that it directs the institute for coastal adaptation and reliance uh resilience to convey

[05:51:05] a stakeholder work group and report the findings to the general assembly by november 1st 2026. so this essentially has now become a bill uh to look into essentially uh the overall looking into the overall view on how we deal with tree canopy in the future and with that I ask that we pass this the question is shall the senate adopt the conference committee report for house bill 549 all in favor of that motion will record their votes aye those opposed no are the senators ready

[05:51:41] to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll. Ayes 22, no 17. Ayes 22, no 17. The Senate adopts the conference committee report. Page 11

has bill 684. The senator from York. Thank you madam president. I move that the Senate agree to the conference committee report and speak into that motion. The senator has the floor. Thank you. The report clarifies language that technicians are local employees and it

[05:52:19] It also matches some dates up. Let me remind the members that this is the cognate to my bill, SB 59. It does not expand photo enforcement. It now requires training where none previously existed before.

[05:52:36] And I hope the members would support the bill. Thank you. The question is, shall the Senate adopt the conference committee report for House Bill 684? in favor of that motion will record their votes aye those those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close

[05:53:05] the roll as 26 nose 13 eyes 26 nose 13 the senate adopts the conference committee report page 12 house bills 892 the senator from charlottesville madam president i move adoption of the conference report and speaking to that senator has the floor thank you um uh ladieship madame president ladies gentlemen senators this has to do with the irp that phase the traditionally phase two utilities

[05:53:40] have to file this bill came down from the governor and along with other governor other bills that came from the former what was formerly known as a sewer um so i i've said it again i apologize um some some cooperatives electric cooperatives are required to provide some information for the first time and the amendments the only difference between this bill the the report and the bill that passed the senate is some amendments were incorporated into the enactment calls to the request of the of the distribution cooperatives i hope you will agree with the conference report

[05:54:19] the question is shall the senate adopt the conference committee report for house bill 892 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 21 nose 18. ayes 21 nose 18 the senate adopts the conference committee report

[05:54:51] page 12 has bill 930. senator from eastern fairfax um thank you madam president i move that we um adopt the conference committee report and speak to that motion senator has the floor thank you madam president ladies and gentlemen senate this bill is um a piece of my larger bill senate bill 644. this has to do with um employee retaliation we first adopted our whistleblower retaliation

[05:55:23] statute in 2020. i think we made some amendments to it last year um this bill um makes it a little bit more robust for the employees um and i also um made some changes to the senate bill 644 this morning which are not contained in 9 30. but the patron has promised me that should 644 pass he will request them to be reconciled consistent with 644 by the governor um but the bill makes clear that when an employee complains about when they blow the whistle on something it clarifies

[05:56:01] that it could include a federal or state law or regulation there's been some ambiguity in the case law about that it also clarifies what good faith means if an employee complains about something in good faith so that the law is clear on that not subject to judicial interpretation it also makes clear with the that if an employee handbook cannot restrict an employee from complaining or disclosing violations of law to anybody so for example you can't have an employee handbook that says you're not allowed to complain to Dolly or the U.S. Department of Labor about

[05:56:38] sexual harassment or employment discrimination or wage and hour violation or whatever. You can't have that in your employee handbook. It says that. It also makes clear that the Attorney General and the Commissioner of Dolly have the authority to investigate employee retaliation. Under current law, only the employee can bring a lawsuit. And then it also makes clear how the damages work from this. The damages can include actual damages, reinstatement to the job, other damages, punitive damages if it's malicious, if it was a malicious firing, attorney's fees, litigation expenses,

[05:57:14] and class relief as well, which we've already authorized in a separate bill. It clarifies the statute of limitations is two years. Currently, it tends to be one. It makes clear when the statute of limitations begins to run, and it makes clear that a collective bargain agreement can't diminish your rights under this statute. That's what this bill does. The changes that were made in Senate Bill 644 as compared with this bill are Senate Bill 644 removes the, it says an employer, it got

[05:57:50] rid of, it got rid of the prohibition on employers blacklisting an employee. In other words, it says an employer can fire, is allowed to fire an employee. It wasn't clear on that before. It also makes clear that an employee's, the timing of, we removed the language about when an employee has to make a report. We made clear that if an employee complains to somebody else besides the employer, that that doesn't count. We also made clear that if there's a, that the employer can enter into a separation agreement with some freedom here, there was some ambiguity about that.

[05:58:28] that's basically what the bill does I'd hope we could adopt the bill and also Senate bill 644 when it comes up the senator from Rockingham I'm president speaking to the bill senator has the floor madam president members of the Senate this is a bit shorter than 644 or to whatever we just talked about but it

[05:59:03] It contains many of the same flaws and a couple of others that I think that we ought to look at very carefully if we're seriously going to adopt this. First of all, the list of whistleblowing activities is contained on the first page in lines 9 through 11 and it is extraordinarily broad.

[05:59:34] It includes any federal law, any law of the commonwealth, any regulation in the Virginia Administrative Code, extremely broad. Second, what it protects is still broad and I do submit, I think it does involve and permit retaliation claims if somebody has made a disclosure to a co-worker.

[06:00:06] If you look at lines 19 through 22, it includes allegations when an employee reports any information or allegation in good faith that, if true, amounts to a violation to, you look over at Romanet 2, another employee.

[06:00:37] So it does permit claims where an employee makes a report to another employee. And it does require some report to be memorialized in writing within a reasonable time.

[06:00:58] It doesn't require it to be reported or memorialized in writing before the alleged retaliatory action. It can even be after the retaliatory action.

[06:01:16] It could be an email to a coworker, another employee, saying, "Remember when I told you a b and c that would be enough to memorialize that whether that allegation is true whether the conversation even took place or not is true it's also important to point out that on lines 19 to 20 the acts that it gives a private right of action for is if an employee reports any information or allegation

[06:01:55] that if true would amount to a violation of federal or state law or regulation. It doesn't have to be true. It could be second or third hand information.

[06:02:11] Did you hear that Jim is having an affair with his subordinate? That is not inconsistent with the good faith definition included in lines 12 and 13.

[06:02:29] It could be totally made up by the person who told them that, but it would be sufficient to support a retaliation claim.

[06:02:44] Looking over at the section dealing with the handbooks, it prohibits in lines 53 through

[06:03:11] 60, handbooks that impede an employee from disclosing possible or actual illegal activity to the public, a governmental body, or to his employer.

[06:03:29] So think about that. If it discourages an employee from making a public disclosure before reporting it to a government agency or to his employer, that would be actionable as a violation of the handbook provision in this bill.

[06:03:58] This is extraordinarily broad. It changes employment law dramatically in the Commonwealth of Virginia in manners that I don't know whether they're intended or not, but they are not consistent with sound employment practices and create remedies for conduct that we should not be creating a legal remedy for.

[06:04:23] So I would urge you to vote no on this bill. The senator from King George. Thank you, Madam President. Speaking to the conference committee report. Senator has the floor. Madam President, the Senator from Rockingham does a really good job of pointing out what I'd like to call the unintended consequences of these bills.

[06:04:47] But as I've sat here this session and particularly today, I've just seen a series of bills targeting Virginia business. And we have bill after bill, which now places potential criminal liability on employer for an employee that works for a subcontractor when the employer doesn't even have a relationship with that employee.

[06:05:18] This bill creating more potential litigation and class action suits as well. And so, I'm not trying to be sarcastic or smart or snarky or anything.

[06:05:36] With all sincerity, I say to this body today, it is very unfortunate that we have the first woman governor elected in the state of Virginia. And she will have the distinction of watching Virginia go from the top of the list in places to do business to the bottom.

[06:06:01] The senator from Eastern Fairfax. Thank you, Madam President. If nobody else desires to speak, speak of the bill. Nobody does right now, Senator. You know, I'm really amazed at how much the sky seems to be falling. So, in 1985, the Supreme Court of Virginia decided a case called Bowman v. State Bank of Keyesville.

[06:06:24] It created something in Virginia lawyers have called Bowman claims, something that have existed since 1985. 41 years we've had Bowman claims, is that right? 41 years. What Bowman says is that you complain about a violation of law to your supervisor and you get fired you can sue them that's been the law for 41 years then in 2020 if you read the existing language in the law today

[06:06:57] it says the law we passed in 2020 if you get fired for complaining about a violation of law you can sue that's been the law for six years too what this bill does is clarifies what a violation or state or federal law or regulation is because there's been some cases that say for example i think i don't practice

cesarean law very much at all but i believe what it said the cases have said is that regulations don't count even though we have this whole set of regulations which

[06:07:34] the courts say carry the force of law because the statute isn't clear regulations don't count only violations of statutes do and perhaps federal regulations the federal regulatory code is massive some cases have held that those don't count even though they carry the force of law so the bill makes that clear so violations of law violations of statute have been something you can sue over if you're fired for 41 years all this does is make that clear with regard to this another employee language that was complained about as I just said that was removed from Senate bill 644 the

[06:08:11] patron has said he's gonna advocate for the governor to take that out to make his bill consistent with this with with with the bill you're hopefully in about to pass. The language about, so if you take that out, there's only liability if you complain to your supervisor, to your manager, or to your officer. I want to remind everybody that if you complain about an affair, is it an affair a violation of the law? It depends. Technically, I think adultery is still a violation of law out there. Technically, I think it's class four misdemeanor.

[06:08:50] Technically. But if people aren't married, people aren't married, then it's not a a violation of law and it's not something ensue under under this. Madam President, I appreciate how some folks think the sky is falling because we're clarifying a bunch of things which have been actionable for 41 years and for the last six years. But this bill does not really tread a lot of new ground. It simply reverses several cases that have come down since we passed the retaliation law in 2020. That's what this bill does. It's not that big of a deal. I hope we can pass it.

[06:09:28] The chair recognizes... Sorry, Madam President, one other thing. One other thing I want to say. Senator from Eastern Fairfax. Class actions. The only time a class action would lie for this is if an employer fired a whole group of people for complaining about a violation of law.

[06:09:46] A whole group. Retaliation claims are not typically about class actions. They're typically specific people who complain about a violation, not 10 people or 20 people or 30 people. The class action piece relates more to the misclassification remedy, the prevailing wage remedy, the minimum wage remedy, and those remedies.

[06:10:07] Not this bill. Not retaliation. Chair recognizes the Senator from Prince Edward. Thank you, Madam President. Speaking of the conference report. Senator has the floor. Madam President, I wasn't going to talk on this, and like everybody else, I'd like to get out of here today.

[06:10:24] but I have watched bill after bill where we're treating employers like they're this enemy that wants to take advantage of employees and it might not seem like a big deal that we're just clarifying a few things but when you dump the entire regulatory code and the potential exposure for employees it's impossible to navigate and the people who have been on the other side of this and who have spent a lot of time in business realize it's already nearly impossible to navigate even with the best of intentions and even in complete good faith. I spent a lot of my career

[06:11:04] as an employee and I'm going to tell you half the stuff that I see coming out of this body would have prevented the growth that led to me starting businesses and creating similar opportunities for other people. I have people in my companies that started at minimum wage that make six figures today. Strictly under the employment of my companies. Not because a group of legislators sat around and made a bunch

of rules that if we follow it we can somehow be good stewards and good citizens. Particularly small business is the horse that we're riding here when

[06:11:40] we're spending taxpayers money. Because whether it's taxing the employers to death, the small businesses to death, or whether it's taxing the employees that they employ, that's the horse that we're riding here and we're beating that horse to death. Thank you Madam President. The question is Shall the Senate adopt the Conference Committee Report for House Bill 930?

[06:12:09] All in favor of that motion will record their votes aye. Those opposed no. Are the Senators ready to vote? Have all the Senators voted? Do any Senators desire to change their vote? The Clerk will close the roll. I 17, no's 22.

[06:12:27] Aye, 17. I 17, no's 22. The Senate does not adopt the conference committee report for House Bill 930. Page 16, House Bill 1272, the second committee of conference.

[06:12:47] The senator from, junior senator from Virginia Beach. Thank you, Madam President. I move that we adopt the conference report and speak into that motion. Senator has the floor. Thank you, Madam President. This is the same house cognate to my Senate Bill 661, the skill gaming bill.

[06:13:06] The only change that we adopted is on line 1780 of page 67. And it explicitly clarifies that the localities, meaning any county, city, or town can opt out, have an opt-out referendum if they so choose.

[06:13:24] And having explained this last night, moved at it, we adopted a conference report. The question is, shall the Senate adopt the conference committee report for House Bill 1272? All in favor of that motion will record their votes aye.

[06:13:41] Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 24, noes 15.

[06:13:58] Ayes 24, noes 15. The Senate adopts the conference committee report. Page 17, House Bill 1377. The Senator from Charlottesville.

[06:14:14] Madam President, I move the adoption report be, or the conference report be adopted. The Senator has the floor. Thank you. Madam Chair, ladies and gentlemen of the Senate, this is the VMI task force bill. We amended the bill in a number of ways in the Senate Finance Committee.

[06:14:32] All of our amendments were accepted in the conference report and are reflected therein. they're in sans one um and that has to do with them we wanted to even up representation they wouldn't agree to that but they wanted their bill so this is their bill with their representation four delegates and two senators um but i'm in my mind two two senators equal many more than four delegates any day so i urge you to vote for this bill senator from chesapeake the question is

[06:15:11] shall the senate adopt the conference committee report for house bill 1377 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the role as 21 knows 18. ayes 21 knows 18 the senate adopts the conference committee report page 18 has bill 1393

[06:15:47] senior senator from fairfax thank you madam president uh i move that the second no the second conference uh committee report on this bill uh be agreed to and speaking to that motion the senator has the floor thank you madam president uh the conference report for house bill 1393 is very similar to the one for senator lucas's bill senate bill 253 which we just agreed to to be clear the bills are not

in conflict this recommended substitute simply includes one provision that That was not in the conference report substitute for Senate Bill 253.

[06:16:21] This one provision gives the State Corporation Commission discretion to determine the extent to which the public interest would be served by requiring that work on certain power generation and storage resources be compensated at the prevailing wage rate. And I reiterate my motion that we agree to the second conference committee report.

[06:16:42] The senior senator from Virginia Beach. The senator from Western Prince William. Thank you, Madam President. Madam President, will the Senior Senator from Fairfax yield for a question? Will the Senator yield? I yield.

[06:16:58] Senator from Prince William. All right. Thank you, Madam President. Madam President, I would just ask the Senator just to basically put on record, want to make sure that everyone understands that one of the problematic issues that came up earlier was about data centers going into low-income areas and some of the -- we had some rather significant issues that came up with that that kind of led to the bill being passed by for the day.

[06:17:19] Can you, would the senator be comfortable telling the body here just basically how that was removed in any other language within this bill regarding data centers is now at no point going toward their benefit, but it is in fact making them having to pay fair share.

[06:17:38] Senator from Fairfax. I yield. Thank you, Madam President. That language was removed. I think people, you know, felt like, again, under the principle of environmental justice that these communities could be taken advantage of in such a process by having something placed there, seemingly looking like it was economic development for the area, but really, you know, deteriorating their quality of life and what have you.

[06:18:09] So I think it was a good removal from the bill and we just passed Senate Bill 253 out of the Senate and this just adds prevailing wage, which I think all of us are in favor of.

[06:18:25] Thank you. All right. Speaking to the bill, Madam President. Senator from Prince William has the floor. Thank you, Madam President. Madam President, I just want to say thank you to the Senator for that clarification. When I was going through the bill earlier, one of the reasons I asked for it to be passed by temporarily for us to go through this process in the first place was to make sure that we had certainty that some of the issues that came up initially with the first conference report were not going to replicate itself in this one.

[06:18:51] I'm not sure why this version and the one from the President Pro Tem weren't merged up so that they were identical at the end. I think probably most of the body would have felt more comfortable if all that had been knocked out ahead of time. And so I assume at this point it's going to be that this is still going to have to be a work in progress as it goes on to the governor because the bills are going to have to get married up at some point.

[06:19:14] And so the vote today is basically let's keep this going and I want to make sure that whatever happens between now, when the bill is dealt with one way or the other, and when we come back for reconvening, I just want to make sure that we are number one, protecting rate payers, number two, making sure that industry is paying its fair share, and number three, we're going about it to make sure that

we're having as much of a transparent process with the public as possible. Thank you Madam President. The question is shall the Senate adopt the conference committee report for House Bill 1393?

[06:19:49] All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote. The clerk will close the roll. Ayes 21, noes 18. Ayes 21, noes 18. The senate adopts the conference committee report. Page 20 has bill 1492. Senator, senior senator from Loudoun. Thank you, madam president. Madam president, I move we adopt the conference committee report and speaking

[06:20:25] to that motion. Senator has the floor. This is a bill that deals with impersonating law enforcement officers so it's a change to 18 to 174 it is similar but not identical to the center from Chesapeake spill which also dealt with impersonating a law enforcement officer and my I believe madam president that they tried to separate out the two bills a little bit so they each do something to the section but don't do the same thing to this section madam president and this this particular bill the first offense is a class one misdemeanor a second or subsequent offense is a class six felony and if any person if any person impersonates a law enforcement officer while wearing a facial covering they are guilty of a

[06:21:03] classified felony and a second or subsequent violation of impersonating a law enforcement officer while wearing a facial covering is a class four felony madam president with that i move that we adopt the conference committee report the question is shall the senate adopt the conference committee report for house bill 1492 all in favor of that motion will record their votes i those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 22, noes 17. Ayes 22, noes 17.

[06:21:42] The Senate adopts the conference committee report. Page 20 has bill 1525. Senator from Eastern Fairfax. And President move that we adopt the conference committee report and speak of that motion. The Senator has the floor. Ladies and gentlemen, this is the bill that has to do with assault rifles and handguns for people under the age of 21. We just debated pretty robustly a little while ago this is the identical cognate I hope we can pass the bill the question

[06:22:17] is shall the Senate adopt the conference committee report for House Bill 1525 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll as 21 knows 18 eyes 21 knows 18 the senate adopts the conference committee report page 20 senate bill 44 the senator from western prince william thank you madam president president move adoption of the conference committee

[06:22:56] report and speaking to that motion senator has the floor all right madam president bill we sent over to the house that they had voted for last year and then sent to the governor apparently wasn't good enough so here's what this one does this one strips out the shall requirement for planning district 8 so this would have only affected northern virginia which means if you're on the other side of the aisle didn't affect you at all so number two on this what it does now is it has clarifying language in there that simply says that if a locality decides because it's still a may clause to uh create a public map which you can see on prince william county website by the way if you go to the cemetery preservation um section their website and planning uh you can

[06:23:36] see a very cool little map right now that's got basically it shows you where every cemetery is in Prince William, Manassas, Manassas Park and it also shows you about acreage and all the other sort of

stuff. What this now does is has one sentence the entirety of this bill is one sentence that simply says that just because you create the map that doesn't mean that you are now replacing newspaper public hearing notices and considering that we have you know previously adopted a bill that allows for online publication of public notice I think it is important to make make sure that we're clarifying that. The bill we passed out originally was cooler, but this was due

[06:24:12] for now. So with that, I move for adoption of the conference committee report. The question is, shall the Senate adopt the conference committee report for Senate Bill 44? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote?

[06:24:29] Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 29, noes 10.

[06:24:47] Ayes 29, noes 10. The Senate adopts a conference committee report. Page 21, Senate Bill 59. Senator from York. Madam President, I move that the Senate agree to the conference committee report and is speaking to that motion.

[06:25:03] Senator has the floor. Thank you, Madam President. This is the same bill as we heard a few minutes ago about photo enforcement training. Again, it does not expand photo enforcement, but requires training where none previously existed, and I'd hope we'd pass the bill.

[06:25:20] The question is, shall the Senate adopt the Conference Committee report for Senate Bill 59? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[06:25:39] The clerk will close the roll. -Aye's 26, no's 12. -Aye's 26, no's 12. The Senate adopts the conference committee report. -Senate Bill 249 on page 25.

[06:25:57] -Senator from Eastern Fairfax. -A move we adopt the conference report and speak of that motion. -Senator has the floor. -Ladies and gentlemen, the Senate, Senate Bill 249 is the identical cognate to House Bill 429, which passed on a party-line vote about 30 minutes ago. This has to do with the integrated resource plan minus the enactment clause.

[06:26:13] I would hope we could adopt the bill. The question is, shall the Senate adopt the conference committee report for Senate Bill 249? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted?

[06:26:30] Do any senators desire to change their vote? The clerk will close the roll. Ayes 20, noes 18. Ayes 20, noes 18. The Senate adopts the conference committee report. Page 31.

[06:26:47] Second Conference Committee report on Senate Bill 496. The senior senator from Fairfax. Thank you, Madam President. I move that we concur with the second Conference Committee report speaking to that motion.

[06:27:04] Senator has the floor. Thank you, Madam President. This is a cognate identical to House Bill 110, which we passed out just a few moments ago on the storage of guns and cars. And I urge that we concur with the second conference committee report.

[06:27:21] The question is, shall the Senate adopt the conference committee report for Senate Bill 496? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted?

[06:27:37] Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 18. Ayes 21, noes 18, the Senate adopts the second conference committee report for Senate Bill 496. On page 34, Senate Bill 589, second committee of conference.

[06:28:01] Senator from Central Fairfax. Thank you, Madam President. I move that the Senate agree to the conference committee report and speak to that motion. Senator has the floor. Thank you, Madam President. We just voted on the House version about, I want to say maybe an hour ago. I lost track of time. But this is related to expanding the authority, allowing Virginia localities for tree preservation and replacement during land development.

[06:28:24] And it also includes a study to direct the Institute of Coastal Adaptation and Resilience to convey a stakeholder workgroup and report the findings to the General Assembly. Again, we've seen a lot of tree canopy bill. What this bill will end up doing is that it has put it all in one, and we'll go ahead send it to a work group that can come up with policies of the future so thank you and i hope that we can uh move this forward the question is shall the senate adopt the second conference committee report for senate bill 589 all in favor of that motion will record their votes aye those

[06:29:00] opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 22, no 17. Ayes 22, no 17. The senate adopts the conference committee report. Page 36, senate bill 643. Senator from eastern Fairfax. We have

[06:29:33] done that. Okay. Senator is correct. Page 36, senate bill 644. Senator from eastern Fairfax. Thank you, Madam President. I move that Senate Bill 644 pass and speak to that motion.

[06:29:53] The Senator has the floor. Thank you, Madam President. Again, ladies and gentlemen of the Senate, Senate Bill 644 is the Senate cognate to 238, which we passed on a party line vote. And it also incorporates House Bill 930, which just failed, however, made multiple changes to the language in 930, which I will again detail.

[06:30:16] And I would note to the body, this passed the House 6235. The changes made to the retaliation section that were not in 930, which just did not pass, was number one, it prohibited and it eliminated the prohibition on an employer blacklisting the employee.

[06:30:36] So in other words, the employer is not required to rehire the employee. Not required to rehire the employee. Secondly, it makes it not actionable if the employee makes their report to another person. What you just heard complained about is out of the bill.

[06:30:53] The complaint has to be to a supervisor, manager, or officer. And it does not have to be within a reasonable period of time. That is removed from the bill. In addition, the language in 930 about the employee making the disclosure to a party other than the employer to a third party is out.

[06:31:20] So the language to the third party is out of the bill. In addition, we made an additional change this morning that provides that an employer has full flexibility to enter into a separation agreement.

[06:31:36] They have the power to enter in a severance agreement. Those are the changes that are made this morning. Five different things that were not in House Bill 930. But otherwise, this bill contains the language we covered and I think it was House Bill 238 about misclassification, prevailing wage, minimum wage, etc.

[06:31:57] Clarifying and enhancing employee rights and administrative enforcement of those laws so that all of our workers can get what they're paid, what they're due. I hope we get it past this bill. The senator from Rockingham. Madam President, speaking to the bill.

[06:32:14] The senator has the floor. Madam President, I listened very carefully to the senator from Eastern Fairfax when we were arguing about the last bill that is incorporated into this. And I listened to him say that this isn't revolutionary.

[06:32:31] It doesn't plow any new ground. It just reverses a bunch of court decisions that have been entered. Let me tell you, you probably don't have to be a lawyer to understand that's plowing new ground. That's changing the law of the Commonwealth of Virginia. And this really does significantly change the law of the Commonwealth of Virginia.

[06:32:50] The senator from Eastern Fairfax talked about Bowman claims. Bowman claims have been around for a long time, but this fundamentally changes what can be asserted as basically a Bowman claim. Under the standard that's in effect under Bowman, the termination of employment has to have followed or has to have been propagated or carried out by the employer in violation of a clear policy of the Commonwealth of Virginia.

[06:33:24] The clear policy has to be expressed in a statute as Senator from Eastern Fairfax said previously not in regulation so that's number one where it is plowing new ground. two, it says that the employee has to belong to the class of persons that the statute was intended to protect.

[06:33:42] This expands that profoundly. This says any violation of state or federal law or regulation, not necessarily a violation that puts the employee in the class of persons the statute was intended to protect.

[06:34:00] If you didn't like the last bill, you should not like this bill. does fundamentally change status of employer-employee relationships in the Commonwealth of Virginia. The senator from Arlington. Thank you madam president. Madam President I rise to ask the senator from Eastern Fairfax a question. Will the senator yield? I yield. Senator from Arlington. Thank you madam president. Could you explain what differences there may be in this

[06:34:37] proposed bill compared to what the federal statute if there are federal statutes that affect any of this is there so are there similarities are there conflicts senator from Eastern Fairfax madam president if the senator is talking about employee retaliation that's some really nuanced stuff that I don't believe there's a specific federal employee retaliation statute there are employee retaliation provisions scattered I believe in five

[06:35:12] or six different federal employment-related statutes, which I'm not totally familiar with, but there's no one comprehensive employee retaliation statute at the federal level like there is at the state level. I would say that Virginia law, in terms of misclassification, minimum wage, prevailing wage, which is also in this bill, not retaliation, but those concepts, Virginia law was formerly narrower than federal law.

[06:35:39] We adopted the federal definition of employee in this bill to catch up with federal law to make it consistent. So, that was one of the changes I made to the bill after it was introduced, was to use the exact same definition of employee that is used in the Fair Labor Standards Act, which has been the law since 1938. That's the best way I can answer your question.

[06:36:03] Okay, thank you, Madam President. Senator from King George. Thank you, Madam President. Speaking to the conference committee report. The Senator has the floor. Madam President, as I listen to the discussion on the floor and the Senator from Eastern Fairfax has one interpretation and the Senator from Rockingham has another and the Senator from Arlington asking questions about all these, this illustrates the problems with these bills.

[06:36:35] It's the uncertainty of these bills that leads to litigation. Businesses cannot function in an environment of uncertainty. Business needs certainty so they can navigate the rules and prosper.

[06:36:55] You know, most of my life I worked for somebody else, I was glad to have a job. Whether it was picking tomatoes in the field or pulling crab pots, whatever it was. And why are we treating employers like they're this evil demon?

[06:37:11] I don't get it. It's not just one bill. It's not just one little bill that reverses a court decision but really doesn't do anything. It is a whole host of bills.

[06:37:27] It's exposing employers to potential criminal liability for an employee that does not even report to them. I mean, think about that. This is an employee that works for someone else. You now can have potential criminal liability for that.

[06:37:46] the culmination of all these bills businesses will spend more time in court than anywhere else and that's what kills business. The senator from Hanover. Madam President, would the senator from Eastern Fairfax yield? Will the senator yield?

[06:38:06] I yield. Senator from Hanover. Madam President, I'd ask the gentleman on lines 344 in that paragraph, which I think is a new code section 40.1 to 27.3. I'm reading, it says, each person who suffers the loss, they're entitled to reinstatement of the employee to the same position held before. I thought the gentleman said that reinstatement was not in the bill. Can you tell

[06:38:44] me what that line means? Senator from Eastern Fairfax. Sorry, Madam President, I'm on line 344, and it's existing code language, so I'm not really sure the Senator's referencing on, I'm on 344 of the conference report, which on mine is page 6 of 11, and it's all existing code language.

[06:39:11] Senator from Hanover. Madam President, maybe there's a different version, but the one that was pulling up for me, 344 was all new language, subsection F, and it was page 14.

[06:39:30] Okay. senator from eastern fairfax i know that's collective bargaining take me okay 644 lean fine 344 four look madame president it's double little eye and it says reinstatement of the

[06:39:57] employee to the same position okay for some reason your versions are lining up with different line numbers than mine but you're in 40.1 27.3 okay okay i think i'm in the same place different line numbers. Madam President. Senator has the floor. What's the question? Madam President, I asked the

[06:40:33] gentleman, I thought I heard him said that reinstatement was no longer in the bill. I'm asking how does this not reinstatement? Or did I mishear him? Senator from Eastern Fairfax. Thank you, Madam President. Madam President, what I was referencing was if you look under subsection B of 40.1 27.3 which is the same code section you're in um after privileges of employment

[06:41:06] um on some section b uh right before the new language is inserted where it says or otherwise retaliate against an employee the original bill until this morning said that employer an employer could not blacklist an employee when they fired them and blacklisting blacklisting means you're making an

employee not subject to being rehired and so we removed the prohibition on blacklisting which means an employee can be um can't can't an employer cannot blacklist cannot prohibit somebody from being rehired in the future that was a request that was requested by the chamber of

[06:41:44] commerce that change the prohibition on blacklisting they want that out madam president i asked the gentleman a different question will the senator yield for a second question oh you senator from Madam President, I realize we've been here a long time, last couple days, but I'm failing to understand your logic.

[06:42:07] It looks like this does exactly what you said it doesn't do. It requires reinstatement. So I'm confused how it doesn't... The bill does the exact thing you said it doesn't do. So tell me how I'm wrong. When it says person who suffers a loss, one of the actions that might be required is reinstatement employee. Senator will direct the questions through the chair. Senator from Eastern Fairfax. Now yield, Madam President. Okay, so suppose an employee in bookkeeping says you've got all these people you're employing and you're not

[06:42:46] and they're you're misclassifying them. You're not paying the minimum wage. You're not doing things you're required to by Virginia law. They tell their supervisor hey we're not paying these people right. Supervisor says I don't care. I don't want to pay them I don't want to follow the law you're fired that employee can then sue the employer and among other things they can say I want my job back and it's part of the remedy the court can say you're entitled to your job back it's part of the remedy what the what the blacklisting is about is the under

[06:43:24] this law an employee there on the original bill employer was not allowed blacklist an employee. We removed that requirements and now an employer can blacklist an employee so they cannot be sued for blacklisting somebody solely. Madam President, speaking to the provision. Senator has the floor. Maybe it's just because I'm tired but that seems like a distinction without a difference. If you can't say you can't blacklist them so you don't employ them but you could be forced to re-employ them, it's the same difference. So this looks like whether you

[06:44:00] call it blacklisting or forced reinstatement, it is still doing the same action. So even though you might have taken it out one place, it's back in it in this one. Senator from Lynchburg. Yes, Madam President, speaking to the bill. Senator has the floor. Thank you, Madam President. Normally it's somebody from the other side that will say something that will spark my interest. This time it was something that the Senator from King George said. And talking about all of these bills and the policies. It's really the policies we're setting from the top with everything from collective

[06:44:39] bargaining to class actions to family leave to all these ways to sue your employer. And the senator from King George said, you know, our businesses are going to be spending more time in court. I hope our businesses would be spending more time in court. But really what I'm afraid of with all these bills that we're passing this session, and I'm afraid the governor is going to sign is our businesses are really going to be spending more time in North Carolina, in Tennessee, in Texas, and in Florida. They are going to leave. That is what we're doing. We're sitting in a tone.

[06:45:15] We do not appreciate business. We don't want you here. We're going to tax you. We're going to make it harder for you to do business, and they're going to pack up, and they're going to leave. I hope we vote against this bill. Senator from Eastern Fairfax.

[06:45:33] Desire to speak. Speaking of the bill, really briefly. Senator has the floor. Let me give you some examples of the kinds of stuff this is clarifying. There was one court that held that if an employee complains to their employer about somebody breaking the law, you say that, hey, they're not paying that employee minimum wage.

[06:45:54] There was one court that said, if you get fired for that complaint, it doesn't count unless you cite the specific statute that requires the payment of minimum wage. That's one thing this fixes. It's already, you can already sue for complaining about that, but one court said you have to be smart enough to cite a specific code section, a specific regulation, in order for you to have a cause of action for that.

[06:46:20] That's wacky. That's one of the things this fixes. Another thing a court held was that because of the words of this, people didn't have a right to jury trial. They only had a right to a bench trial because it talked about the court and didn't talk about a court or a jury. This thing clarifies that.

[06:46:36] other cases that say you're not liable for subcontractors because we didn't have the directly indirectly language that's why we incorporated the fair labor standards like definition so you can be held liable for the actions of subcontractors and you could be held criminally liable if you have an intent to defraud so you have an intent to defraud or you do it willfully which means you know what you're doing that's the kind of stuff this changes it doesn't really change the law it clarifies it there's been a lot of litigation since we passed the retaliation law five years ago this

[06:47:13] clarifies a lot of those things which will by the way provide business certainty because they'll finally know entirely what the law means so they won't have to litigate it as much because it's clear I would hope we could pass it the question is shall the Senate adopt the conference committee report for Senate bill 644 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do

[06:47:42] any senators desire to change their vote the clerk will close the roll 16 knows 21 by 16 knows 21 the Senate does not adopt the conference committee report for Senate bill 644 page 37 Senate bill 661 the junior senator from

[06:48:20] Virginia Beach. Thank you, Madam President. I move that we adopt a committee conference report and speaking to that motion. Senator has the floor. Thank you, Madam President. This is the identical bill to House Bill 1272 involving skilled games and having previously explained the conference report, I move that we adopt. The question is, shall the Senate adopt the conference committee report for Senate Bill 661.

[06:49:00] All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[06:49:21] Ayes 25, noes 15. Ayes 23, noes 15. The Senate adopts the conference committee report. Madam President. Senator from Orange. Having voted on the prevailing side in which the last bill passed, I ask that vote be reconsidered so my seatmate can vote the proper way.

[06:49:48] The question is, shall the Senate reconsider the vote by which we adopted the conference committee report for Senate Bill 661?

[06:50:09] All in favor of that motion will record their vote's aye. Those opposed, no. Are the senators ready to vote? have all the senators voted this is a vote to reconsider this is to reconsider the clerk will close the roll I was 38 no zero the motion is agreed to junior senator from Virginia Beach thank you madam president having previously explained the conference committee report a move that we adopt the question

[06:50:47] is shall the Senate adopt the conference committee report for Senate bill 661 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 23 noes 15. ayes 23 noes 15 the senate adopts the conference committee report page 37

[06:51:21] Senate Bill 673. Senator from Mecklenburg. Thank you, Madam President. I move that we adopt the conference committee and speak into that. Senator has the floor. The conference report takes the House subcommittee substitute, which passed the House 40 to 0, and we reject it so we could go into conference. But in the conference, we decided to accept the House substitute with a few changes.

[06:51:53] So I'm going to explain how that version is different from the Senate version that we passed 40-0. So the House version keeps stalking in Virginia's existing stalking statute 18.2-60.3 and clarifies that stalking can occur through electronic communications, including by telephone.

[06:52:14] This avoids creating overlapping criminal statutes. We were going to create a whole new statute for cyber-stalking, and this just adds it to the existing stalking standard. The House version keeps Virginia's existing stalking threshold, which requires conduct that places a victim in reasonable fear of death, sexual assault, or bodily injury.

[06:52:39] The House substitute, which is now the Conference Committee Court, protects victims from stalking conducted through electronic communications while keeping the law consistent with Virginia's existing statute and clarifies that victims should not lose protection simply because they live or work near the person.

[06:52:59] Well, that's not true. That's what I wanted to get in there. Anyway, this is not exactly what I wanted, but it is close enough for this year and we'll work on a little more next year. I've just asked that we adopt the conference committee report thank you the question is shall the Senate adopt the conference committee report for Senate bill 673 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote of all the senators voted do any senators

[06:53:29] desire to change their vote the clerk will close the roll I was 38 no zero ayes 38 no zero the Senate adopts the conference committee report page 39 Senate bill 756 second committee of conference senator from Eastern Fairfax thank you madam president I move the adoption of the conference importance being the motion senator has the floor the men of president this is the same as the billy heard yesterday minus the enactment clause which means

[06:54:07] the temporary facility is out and also it subtracted the alternate um revenue allocation formula if fairfax were to adopt a casino so basically this is the bill we adopted last year uh it passed the house i believe 52 to 40 something already 54 maybe i can't remember hope we can adopt the bill senator from northern fairfax i can madame president speaking to the bill senator has the floor i'm not going to go on but i'm going to just make it

[06:54:42] clear that Fairfax County continues to oppose this and so do I and I would ask that you vote no. Senator from Western Fairfax. Thank you Madam President. Question for the patron. Senator from Eastern Fairfax do you yield? Senator from Western Fairfax. Madam President I want to confirm that this has the original requirement of a referendum of the people of that county. Senator from Eastern Fairfax it does all right speaking to that madam president senator

[06:55:19] from Western Fairfax has the floor thank you madam president I want to thank the patron and the conferees for listening to the concerns that were brought up so what we are basically now voting on and I think it is the best posture for this bill to be in is to allow the voters of Fairfax County to vote on whether they or not they want this casino if their locality decides that there would be some value in doing

[06:55:56] that and we have talked I think ad nauseum on the values and some of the negative aspect of this and I would urge my colleagues to let the voters decide thank you madam president the senator from Roanoke. Thank you, Madam President. Will the Senator from Eastern Fairfax yield for a quick question? Will the Senator yield? I'll yield. Senator from Roanoke. Thank you, Madam President.

[06:56:30] Madam President, I'd just like to ask the Senator from Eastern Fairfax that this, you said this is just like last year's legislation, so it only references Fairfax County and no other jurisdiction in the commonwealth is that correct senator from fairfax that's correct the way it's interpreted urban county form executive government same location restrictions metro stations 1.5 million square feet next use facility etc yes thank you madam president senator from arlington

[06:57:04] madam president i rise to speak senator has the floor um i would urge my colleagues to vote no on this this was not a good idea last year it wasn't a good idea a few days ago it's not a good idea now the chair of the Board of Supervisors of Fairfax County has stated he doesn't want the authority he's not going to use the authority this is all about bringing in bringing in revenue for the state I sincerely believe there are other ways that we can bring in much-needed revenue to

[06:57:42] support public education to support housing initiatives to support our access to health care and all the things that we know Virginians need to make their lives better and affordable there are there are better ways to approach the revenue question I would urge my colleagues to vote no senator from Lynch Lynchburg seeing no other senators who wish to speak the question is shall the

[06:58:22] Senate adopt the conference the second conference committee report for Senate bill 756 all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 25, noes 13. Ayes 25, noes 13. The Senate adopts the conference committee report for Senate Bill 756.

[06:58:58] Page 39, Senate Bill 764. The senator from Franklin County. Thank you, Madam President. I now move that we adopt the conference committee report for SB 764 and speaking to that motion the senator has the floor thank you madam president for those in the in the Senate floor this is a bill that we passed out of here that would allow for deferred dispositions in a criminal case it started in its original iteration as allowing deferred dispositions in cases

[06:59:35] involving DUI the senator from Eastern Fairfax then allowed that for for courts to have the ability to make deferred dispositions in all cases we sent it in the conference and certainly we've listened to the concerns of both Commonwealth's attorneys and and people in our area our constituents at the same time judges and have not participated but lawyers in the in the field have and so what we did was we

basically said that a deferred disposition we kept it when it came to the DUI but when it came to to other crimes like felonies we

[07:00:08] excluded those felonies that are found on the seal ineligible for sealing list pursuant to 19.2 392.12. So basically this, unless the Commonwealth agrees, then those cases cannot be taken under advisement or had a deferred disposition. It eliminates all of the violent felonies, all the dangerous crimes from that kind of deferment, unless the Commonwealth would agree to it. So this bill now has guardrails around it to where it's really for those unique cases that occur when a defendant is before the bar of justice and before a court and in some cases when the

[07:00:46] commonwealth does not need to agree to it where a case may be taken under advisement continued for a period of time certain acts must be taken by the defendant and after a period of time of good behavior has been had that there may be a reduction in the charge or even a dismissal especially for those unique cases involving driving under the influence but it does not does not allow those to happen in violent criminal cases and convictions such as this unless the Commonwealth's Attorney believes that such a disposition is appropriate. So for those reasons, Madam President, I now move once again that we adopt the Conference Committee Report for Senate Bill 764. The question is, shall the

[07:01:25] Senate adopt the Conference Committee Report for Senate Bill 764? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[07:01:44] The clerk will close the roll. Ayes 27, nos 11. The Senate adopts the conference committee report.

[07:02:08] 16 has Bill 1263, second committee of conference.

[07:02:29] Senator from Eastern Fairfax. Thank you, Madam President. I move we adopt the conference committee report and speak to the motion. Senator has the floor. Thank you, Madam President. This is just a little collective bargaining bill. I move we adopt the bill. Just kidding.

[07:02:45] I wish it could be that simple, Madam President. Madam President, this is the collective bargaining bill. What you have in front of you is similar to what you saw before with some changes. First of all, home health care workers are back in the bill, but instead of being employed by a separate authority, they are employed via the Home Health Care Council.

[07:03:14] In addition, college workers were in our bill. They are now out of this bill with the exception of service and clerical workers, which are defined in the bill.

[07:03:29] That excludes the vast majority of people who work at universities, like the people who work in admissions or student services or rec centers or athletics, professors, anybody who teaches or is involved in teaching, that's all out.

[07:03:49] And out are two health centers, which are both massive. What's also out is employees are not allowed to collectively bargain their health benefits if they're under the state employee health care plan.

[07:04:07] They are allowed to collectively bargain health care benefits if they work for a local government that has its own independent health care plan or if they're home health care workers who have no healthcare right now but are allowed to collectively bargain that obviously it's all subject to funding which doesn't exist right now in addition it removes the word binding arbitration throughout the

bill because it was confusing now the bill only references arbitration because the arbitration was never binding to begin with because every agreement is subject to the approval of the governing body at the end of the day in addition this bill allows dolly to

[07:04:46] begin working on the regulations for collective bargaining before the public public employee relations board is created otherwise known as the perb which i'm sure the senator from charlesville would like to use a lot once he's able that's basically what the changes are from the prior bill there's some other technical stuff i get into if people want to although i suspect people are probably not interested in that i would hope we can adopt this bill the chair recognizes the The Senator from Hanover.

[07:05:19] Madam President, would the Senator yield for a few questions? Will the Senator yield? Rarely. Senator from Hanover. Madam President, I won't editorialize about the number of rewrites, but Madam President, I would ask the gentleman in the section where it says exempting exemptions from this article, item nine, exempts public institutions of higher education.

[07:05:50] I am aware that entities like VCU Health System are a separate authority. I am not sure the authority for VCU Health. So my question is, would they be exempt because they're not public institutions of higher education?

[07:06:06] Senator from Eastern Fairfax. Madam President, the answer to that is my assumption was that they're not because my assumption was that they were under VCU.

[07:06:23] But given what the senator has said, it caused me to question that a bit. But it was my assumption that they were out. But I'd have to go specifically answer your question to figure that out. Madam President, would Senator yield for additional questions? Senator, will you yield?

[07:06:39] I'll yield. Madam President, I'll ask the senator just to make sure that so the same category of workers that are in the rest of the bill, if they work for the General Assembly, they are not allowed to collective bargaining under Item 7.

[07:06:57] Senator from Fairfax. Madam President, I would say yes. Line 237, number seven, employees of the General Assembly are completely exempt from the article. That's a separation of powers problem, as I described in our first floor debate. Madam President, speaking to the bill.

[07:07:13] Senator has the floor. Madam President, everybody knows I'm not in favor of collective bargaining. I am convinced that you will see tax increases from the state level and from the local level at levels that make our discussion about the budget pale.

[07:07:31] They will not be in the millions of dollars, they will be in the billions of dollars. But Madam President, I would say there's two other things. One, institutions like our VCU health system here in Richmond are going to have to fall under these provisions.

[07:07:48] That means people that are doctors and research professionals that make salaries, and we're We're glad that they're there and we're glad that they're working hard, but they are making an incredible amount of money and they will be able to collective bargain.

[07:08:03] But Madam President, I've heard the gentleman's argument about us being a separate branch. But Madam President, we have the ability to control it. We're creating this. And if we think that collective bargaining is good for every other state employee, good every local government, how is it that the people

that work with us are not good enough to be under these protections? Madam President, we've heard other bills

[07:08:35] today that exempt the General Assembly. That's ridiculous. Madam President, if we think that this is such an important policy that every local government should have to deal with it, every state government entity should have to deal with it, then by gosh we should have to as well. The Senator from Northern Fairfax.

[07:09:02] Thank you Madam President. Speaking to the bill. Senator has the floor. Thank you Madam President. As you might recall in 2020 the former senior senator from Fairfax County and I worked on legislation enabling collective bargaining and at that time we were told that the sky was going to fall to allow localities to collect a bargain what we did and what we are getting ready to do is to allow people to have a seat at the table when

[07:09:35] negotiations are happening and so the executive always has the power of the purse people are not able to demand exorbit salaries but what they are able able to do is give input. We've seen teachers giving input about their schedules so that they can have a lunch break. We have seen firefighters having a seat at the table so that they can have

[07:10:07] input about how long their rest periods could be. What I expect we will see is that employees like home health care workers who do back-breaking work to care for our elderly loved ones might have a little bit of opportunity to say what they can tolerate and what they can't.

[07:10:33] Other states around the country have collective bargaining and the sky has not fallen. This is a thoughtful and compassionate and reasonable policy. I'm excited to see us passing it, that these workers deserve the dignity and respect because they have given their lives for us, and we should give them that dignity to give them a seat at the table negotiating the terms of their employment.

[07:11:01] And I look forward to voting yes, and I appreciate the time. Madam President, would the Senator from Northern Fairfax yield for a question? Will the Senator yield?

[07:11:17] Madam President, I'll yield. Senator from Rockingham. Madam President, we have talked about other economic development, shall we say, ventures in Fairfax County and the preferences of the local board of supervisors.

[07:11:34] I would ask whether the Fairfax County Board of Supervisors has expressed a preference that they not be required to collectively bargain. Senator from Northern Fairfax. Madam President, as a matter of fact, Fairfax County government has indicated to me in a letter that they are supporters of collective bargaining. They embarked on it. They were among the first to embark on it at the local level for the county government officials. And they have indicated to

[07:12:07] me by letter that they support collective bargaining for this policy here. Madam President, further question. Senator from Northern Fairfax, will you yield? Madam President, I yield. Senator from Rockingham. Madam President, am I correct in this understanding that Fairfax County's Board of Supervisors forecasts a nearly $300 million budget shortfall for this fiscal year due in large part to the expense of collective bargaining? Senator from Northern Fairfax. Madam

[07:12:43] president i am looking at the letter that i received from fairfax county i am not seeing that in fact the letter starts off that said fairfax county has taken a thoughtful and proactive approach to collective

bargaining as one of the first localities to exercise its authority granted in 2020 we have both built a system that is both functional and collaborative and then it goes on to talk about the public employee safety union and uh because of this demonstrated success

[07:13:23] fairfax county strongly supports the continuation of collective bargaining we're proud of the system we have developed in the relationship it's fostered and the stability that has brought our workforce these outcomes reflect significant investments of time resources and partnerships with our employees

[07:13:41] Thank you, Madam President. Madam President, speaking to the bill. Senator has the floor. Madam President, reminds me of the saying of the triumph of hope over experience. I think that was with respect to second marriages, not to experience with collective bargaining, but I am reading from an article concerning the Fairfax County's experience with collective bargaining.

[07:14:10] And the county is saying right now that funding for collective bargaining agreements and pay increases to county employees are driving up costs while the county is receiving less money from non-residential property taxes.

[07:14:27] It blames collective bargaining on difficulty funding schools. We've seen how it's worked and the enormous expense, the outflow of resources that counties that have been subjected to this or who have subjected themselves to this have experienced.

[07:14:49] And I suspect that those experiences have something to do with the fact that this isn't going to go into effect until 2028 when we have our next budget cycle and after the next General Assembly elections, so that the people in both of these bodies don't have to campaign in front of voters who are having to foot the increased residential real estate taxes that are going to be coming from the expense of collective bargaining across the Commonwealth of Virginia.

[07:15:25] I hope we don't do this to families across Virginia, because if you want to get serious about affordability, this is your chance. This is your chance. You're going to make it more expensive for families to educate their kids.

[07:15:42] You're going to make it more expensive to live in communities that are already prohibitively expensive to live in. I would hope we wouldn't subject communities across the Commonwealth of Virginia to this. The chair recognizes the senator from York.

[07:16:00] Thank you, Madam Chair. Speaking to the bill. Senator has the floor. Thank you, Madam Chair. In my years as sheriff, I often spoke with my colleagues across the nation, especially those who were in union states, and they relayed to me that initially it wasn't so bad, but over time, it became that the unions became so strong that they dictated everything that went on.

[07:16:31] They dictated the schedules. They dictated every 15 minutes, which you could and you couldn't do. They dictated what color uniforms you would wear, that you would have to buy two pairs of boots, five pairs of socks, two pairs of underwear, and they all had to be blue, what kind of hats you were going to wear.

[07:16:50] And so it became, over time, that those people who we elected, or those appointed police chiefs, were figureheads. They were no longer those people who we put in trust to run those important organizations.

[07:17:06] They were just figureheads and those unelected officials who were running the unions actually ran the government with very little input from the government itself and those people who were elected and pointed to those high positions.

[07:17:22] So it wasn't just salaries. It became salaries and benefits and perks and all these other things. And I just think this is not the road we should be going down. somebody else has said this is if it's a such a good thing why all these small exceptions this one can this one can't this one should especially exempt in ourselves this is certainly there it's optional for love some localities now if they choose to go down that road they certainly can I don't know that we

[07:18:00] should be forcing this on every locality in the state in fact I have not received any kind of email correspondence or talk from any of the localities that I represent that are in support of this everyone is against it thank you madam president the senator from Richmond City thank you madam president speaking to the conference committee report the senator has the floor yes madam president a few years back when the General Assembly gave Richmond the right to collectively bargain as president of city council that

[07:18:38] was something that we took on head-on we heard the same thing that the sky was going to fall in the sky in Richmond at City Council did not fall I represented on City Council and even now in the General Assembly both the House and the Senate many individuals that worked for the City of Richmond and they appreciated the effort that was given to them by the General Assembly at that time in which you served and then on City Council to have that opportunity to sit down at the table and have a voice, something that they had not had forever.

[07:19:15] And so it's something that I believe every county and every locality should adopt. I believe every working man, every working woman, every working person has the right and should have the right to do what is economically feasible for their families and for their localities.

[07:19:33] So it would be my pleasure that we would support this report. Thank you, Madam President. The Senator from Western Fairfax. Thank you, Madam President. Speaking briefly to the bill. Senator has the floor. Thank you, Madam President. Just, you know, we heard a lot about Fairfax and what is happening in Fairfax and their budget shortfalls.

[07:19:57] And I felt that I had to at least stand up and say, you know, there are a lot of things going on in Fairfax County. and I think if you spoke to our supervisors and ask them what is going on with the budget they would say that we send a whole lot of money to Richmond and get a whole lot of less of it back so I don't think that whatever is going on in fact I know that what is happening with our commercial revenue with the

[07:20:32] increased cost of social services etc etc has nothing to do with collective bargaining and our board has been consistently supportive of it however I also want to mention as to what happens when there is not enough money or when the employer does not agree to the negotiations or to the pay increases what What happened in Fairfax County was that they did not meet the agreement that came out of

[07:21:10] collective bargaining for our educators. And so they went back to the table and they renegotiated. And as others have said, collective bargaining is more about voice and power in your workplace, and what you want to see in your workplace.

[07:21:31] It is conversations between employers and employees, and at the end of the day, those conversations are not just about money, but about strengthening the workplace and the relationships, and I think we are all winners because of that.

[07:21:52] So I urge my colleagues to vote for this. Thank you. The chair recognizes the senator from Roanoke. Thank you, Madam President. Speaking briefly to the bill. Senator has the floor. Thank you, Madam President. It was great to hear about how everyone deserves the right to have collective bargaining after we heard about several of the exemptions that this bill contains, first and foremost over our own employees.

[07:22:18] I think it's pretty galling to say everyone deserves a right to collective bargaining, except the next person you're going to see when you walk into your legislative office today. If it's such a good idea, we'd be doing it to ourselves. But we don't think it's that good of an idea for ourselves.

[07:22:34] We think it's a good idea for other people. The Democratic local officials that I get to serve with have overwhelmingly reached out to me saying, "Please do not do this." Not the Republican ones, they don't like it either, but my local Democratic officials in local government.

[07:22:51] A few years ago, we spent a lot of time on police reform here in the Commonwealth and I was happy to support a significant number of those proposals. So many of those proposals were spurred on because of terrible things that happened in other parts of the country by repeat offenders and law enforcement who had who had mistreated citizens multiple times and had been protected by their local unions. Why we would bring that here after all the good work we did to strengthen our own police laws is shocking to me. Thank You Madam

[07:23:27] President. The Senator from Lynchburg. Thank You Madam President. Speaking to the bill. Senator has the floor. Thank You Madam President. It's what we heard the The city of Fairfax has a $300 million budget shortfall.

[07:23:42] And then we heard from the senator from the city of Richmond, who I will note has not been on city council for a while because he was in the House of Delegates and is now in the Senate. But let's look at it. A quick search on my apple pad shows that Richmond city budget and collective bargaining, the mayor has proposed for fiscal year 2027 budget includes $263.5 million in citywide investments to fulfill existing collective bargaining agreements, marking a

[07:24:14] $22.1 million increase over FY26. So in essence, almost a 10% increase from 2026 due to collective bargaining and the police and fire getting a 6.73% raise. So you look at 9% a year for collective bargaining and that will add up really really really fast this is a really really bad idea the senior senator from virginia beach thank you madam president i rise to speak toward the conference report the

[07:24:53] senator has the floor thank madam president uh ladies and gentlemen of the senate i've got a letter in front of me from the mayors of the seven cities of hampton roads their right to express their strong support for preserving the current legislative legislation that grants local governments the option to determine if and how to engage in collective bargaining they do not support this at all they go on to say why and how expensive they believe it's going to be and it's signed by all seven mayors kenny alexander

[07:25:27] mayor of norfolk bobby dyer mayor of virginia beach rick west mayor of chesapeake shannon glover portsmouth mayor jimmy gray hampton mayor philip jones newport news mayor mike durman uh sorry doom and suffolk mayor madam president if the mayors of the 757 can join together putting

partisanship aside wanting to do what's best for their communities and the commonwealth and ask us not to do this i think we should follow what they want when they're the ones on the ground that we

[07:26:06] continue to give unfunded mandates to. They see this as another huge massive unfunded mandate. With that I hope we would listen to our local governments and vote against this collective bargaining conference report. The Senator from Eastern Fairfax. No one else desires to speak Madam President. Please don't provoke anybody. Senator has the floor. I like provoking people. Come on.

[07:26:42] um madam president first of all i just want to make clear that the health systems are in while i had a chance to go check i confirmed that on lines 560 to 61 uva health and vcu health are allocated their own special bargaining units and so they do have collective bargaining but people who work for the schools if you get your paycheck from uva or vcu or whatever jmu george mason longwood whatever, you only get collective bargaining if you're a service employee or a clerical worker.

[07:27:19] So make that clear. One other thing I didn't mention, and another addition to the bill, was the people who manage money for VRS are also excluded. And if you ever look to see how much money those people make, they make a lot of money. Some of them make close to a million dollars, if not more. So they are also excluded. Third thing, I heard some conversation a minute ago about law enforcement. I want to remind everybody that in last year's bill and in this year's bill,

[07:27:46] Law enforcement are only allowed to collectively bargain about pay and benefits and other matters that are not covered by the law enforcement decertification process, which is typically things involving the kind of misconduct we just heard about that's not covered by collective bargaining or things that are covered if you have a police review board in some localities.

[07:28:11] It's not covered by those things. So the problems I think you heard about with law enforcement are not covered by this bill. And then the fourth thing I want to mention is that any localities that currently have collective bargaining agreements are specifically grandfathered.

[07:28:28] I think it's by enactment clause number four through 2028. Any collective bargaining agreement that's entered before 2028 is not covered by this bill. It's grandfathered. And the last thing I just want to note is there was some talk about collective bargaining in Fairfax County, Northern Virginia.

[07:28:53] I would just note there's a man across the river did a whole lot more damage to Northern Virginia than anything involving collective bargaining ever did. I would hope we could pass the bill. The question is, shall the Senate adopt the conference committee report on House Bill 1263?

[07:29:17] All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[07:29:34] Ayes 20, noes 18. Ayes 20, noes 18. The Senate adopts the conference committee report on House Bill 1263. Page 29, Senate Bill 378, second conference report.

[07:29:53] Senator from Eastern Fairfax. I move that we adopt the conference committee report and speak to that bill. Senator has the floor. This is an identical cognitive bill we just passed that we adopt this also. The question is, shall the Senate adopt the conference committee report for Senate Bill 368?

[07:30:12] All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close

the roll.

[07:30:31] Ayes 20, noes 18. Ayes 20, noes 18. The Senate adopts the conference committee report for Senate Bill 378.

[07:31:22] The Senate will be at ease.

[07:33:31] The Senator from Hampton. The Senator from Hampton. The Senator from Hampton will take a deep breath.

[07:33:51] Senator from Portsmouth will stay quiet and not make her laugh anymore. Senator from Hampton. Thank you, Madam President. Madam President, I move that we suspend the rules and discharge the Committee on Rules, waive the second reading, and take up House Joint Resolution 316 for immediate consideration.

[07:34:13] The question is, shall the rules be suspended, the Committee on Rules be discharged, and the second reading of the House Joint Resolution 316 be waived, and the resolution be taken up for immediate consideration?

[07:34:30] All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[07:34:49] The clerk will close the roll. Ayes 38, noes 0. Ayes 38, noes 0. The motion is agreed to. Senator from Hampton. Thank you, Madam President. I move that we read to... My apologies. The clerk will read the title.

[07:35:05] House Joint Resolution 316, providing for House Bill No. 30 to be carried over to the 2026 regular... from the 2026 regular session to a 2026 special session of the General Assembly.

[07:35:22] Senator from Hampton. Thank you, Madam President. I move that we agree to House Joint Resolution 316. And speaking to that... Senator has the floor. It is, as the clerk described, is moving House Bill 30 over from this regular session to a special session.

[07:35:43] Again, I move that we agree to the resolution. The question is... shall house joint resolution 316 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll ayes 38 no zero ice 38 no zero house joint

[07:36:16] resolution 316 is agreed to senator from hampton thank you madam president i i move that we suspend the rules discharge the committee on rules and waive the second reading of house resolution 317 and take up the resolution for immediate consideration the question is shall the rules be suspended the committee on rules be discharged the second reading of the resolution be waived and the resolution be taken up for immediate consideration all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the

[07:36:55] senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 38, noes 0. Ayes 38, noes 0. The motion is agreed to. House Joint Resolution 317, applying to the governor to call a special session and establishing a schedule for the conduct of business coming

[07:37:30] before such special session. The Senate will briefly be at ease. Resolution 317, Amendment 1,

[07:42:13] offered by senator mcdougall page one line 17 after reconvened insert with with at least 48 hours notice the senator from hanover the usual this the senator from hanover madam president the

[07:42:47] conversation back here is are we the only body left in the building madam president i would ask if we're the only body has the other body adjourned sunny does it doesn't matter what we do madam madam president so we'll have the conversation or speaking to the amendment i guess senator has the floor madam president if the other body

[07:43:19] adjourned i'm told sunny diet 708 how can we take up anything i guess that's a parliamentary inquiry

[07:43:30] madam president senate will be at ease the senate will return to order senator from eastern

[07:45:09] in Fairfax. Madam President, speaking to the amendment. Senator has the floor. Thank you, Madam President. Ladies and gentlemen, by the way, we are still in session and we have not adjourned sine die until both chambers adjourn sine die. There's a resolution that was sent over here that we have to adopt. If we make an amendment to it, the amendment will go nowhere and the resolution, the petition to the governor is dead because there's nobody left to accept it to vote on it. So, Madam President, we need to reject this amendment. The other side has my promise that the joint procedure resolution that will govern the terms of the special session will have a 48-hour recall provision and nobody here wants to be called back on less than 48 hours notice.

[07:45:50] In addition, we all know that the rules require the budget to be posted for 48 hours before anybody is allowed to vote on it as well. And the whole reason we're coming back is to do the budget. So nobody here wants to have anything less than 48 hours. We don't petition to the governor often. This is maybe the second time in 17 years I've been here we've done this. I think we did last time with Governor Yonkin when the budget didn't get done. Typically, we wait for the governor to call us in. Then we adopt the joint resolution with the 48 hours in it. We're just going to do it that way, and we'll all be fine. I guarantee you, the other side, you will have 48 hours notice. We're not going to agree to anything different, but we need to pass this

[07:46:29] resolution that's before us right now so we can petition the governor for two-thirds, or else we are totally at the whims of the governor as to whether or not she wants to call us, etc. So we need to adopt this. Reject this amendment. The question? Madam President. Senator from Hanover.

[07:46:47] Madam President, with the assurances of the majority leader and the insurances of the chairman from the committee of rules that the 48 hours will be in place, I'm going to withdraw the amendment. But Madam President, I would tell the gentleman that when we do procedural resolutions, when we do procedural resolutions, there are votes.

[07:47:11] There's no guarantee that this procedural resolution will be like the next. So I am relying on the fact that there will be 48 hours in the new rules that we've not yet adopted for us to be able to review the budget and 48 hours before we come back in for each session in the future.

[07:47:31] Without objection, the floor amendment has been withdrawn. The senator from Hampton. What are we doing now? Oh, I move that we agree to House Joint Resolution 317, which is the operational resolution regarding the conduct of business for the special session.

[07:47:54] The question is, shall the Senate agree to House Joint Resolution 317? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted?

[07:48:10] Do any senators desire to change their vote?

[07:48:24] The clerk will close the roll. Ayes 28, noes 9. Ayes 28, Nose 9, House Joint Resolution 317 is agreed to.

[07:48:43] Senator from Eastern Fairfax. Inquiry of the clerk. Does that complete our calendar at 7.28 p.m. on this sunny day day? That completes the calendar. Is there any other business to come before the Senate?

[07:49:01] The chair, we are still in session, senators. The chair recognizes the senator from Washington. So, Madam President, I know the hour is late, but I would just like to make a very brief point of personal privilege.

[07:49:19] Senator has the floor. It was going to be a little bit longer and a little bit more impactful until I had a conversation with the senator from Shenandoah who reminded me that one of his teams already beat one of my teams this week. But I would just like to say and congratulate the Abinan Falcons today on their Class III state championship.

[07:49:40] they defeated the Skyline Trojans 58 to 38. - The chair recognizes the junior senator from Loudoun. - Thank you, Madam President. I raise for a point of personal privilege.

[07:49:55] It'll be very brief. - Senator has the floor. - Thank you, Madam President. With all of your permission, I want to record our great appreciation to the left-hand governor for doing an amazing job this session and doing it through Ramadan fasting. So thank you so much wishing you all the best from all of us. Thank you. Thank you, Senator. Thank you.

[07:50:28] The chair recognizes the senator from Eastern Henrika. Thank you so much, Madam President. I rise also for two very brief points of personal privilege. Senator has the floor. Thank you. Madam President, first and foremost, I would like to say that starting around October, the incredible legislative staff that makes this place run, that allows this place to turn, that allows us to do our work they kick into high gear not only is it the legislative staff it is all the staff throughout the entirety of the General Assembly and this Capitol to

[07:51:02] include our Capitol Police all the way to include Uliath who is the staff that is in the kitchen day after day supporting us and so I just wanted to take an opportunity before we go on break and thank all of the incredible individuals that allow us to do the business of the Commonwealth thank you

[07:51:21] senator my second senator from Eastern Henrique thank you madam president and my second very brief point of personal privilege four years ago after a one point loss in the class three boys basketball championship Petersburg high school did not win the state championship but today they are back

[07:51:59] happening right now in the Segal Center and the last time I checked the score was 19 to 31 with them on top I am wishing them all the best of luck I want to give a huge shout out also to freshman standout King Bay coach who was one of the Commonwealth's most highly touted young players right now and I do hope that they taken home against Lake Taylor High School of Norfolk and so if anyone can hear

me in the Segal Center we are wishing them the very best of luck in this state championship game madam president thank you senator the senior

[07:52:34] senator from Henrico disregard my matter president I was just gonna kiss up to you but Srini Robinson did it already well thank you senator senator from Shenandoah thank you madam president I rise for brief point of personal privilege senator has the floor yeah the Southwest boys have kind of been beating up on me over here my seatmate from Tazewell and the Washington fellow over there did take it to two of the Valley teams but I was grateful that my Clark County girls basketball team prevailed over Union and also my Hanley

[07:53:14] boys team prevailed over Hampton 61 42 and I also want to give a little shout out to Luray High School who had two teams in the state oh did my take am I stealing your thunder two teams in the state finals boys and girls on the same night which is quite a feat in the Luray boys the Luray girls lost unfortunately but the Luray boys won in double overtime to Fort Chiswell and a player for Fort Chissel scored 53 points and I think that's an all-time VHSL

[07:53:47] record. So the Valley represented well. Thank You Senator. The Senator from Western Prince William. Thank You Madam President Rice for a brief point of personal privilege. Senator has the floor. Thank You Madam President this will be the most popular one of the evening. I also have to just say as former reporter turned legislator thank our press corps here at the Capitol which is gonna get like a golf clap at best. Our reporters here are going through, I want to just keep it just to level set with everyone, newsrooms across the country are taking hit after hit after hit on a constant basis. There's so much uncertainty for so many people who are working and the people who

[07:54:27] are coming here who are being the eyes and ears of the public, it can be so unthankful in so many regards and they choose to stick around here to make sure that someone is holding all the electeds actually accountable here so I just want to say shout out to everyone in the newsrooms and shout to all y'all who still are keeping the faith and are still making sure that quality journalism matters thank you madam president thank you the clerk will report any announcements on

[07:55:00] the desk I have no announcements madam president the chair recognizes the senator from Portsmouth thank you madam president I thought this hour would not arrive madam president I move that the Senate do now adjourn sine die as many as are in favor of the motion to adjourn sine die will say aye those

[07:55:37] opposed no the eyes have it the motion is agreed to the Senate is adjourned Thank you for joining us. This concludes this broadcast of the Senate of Virginia in Richmond, Virginia.

[07:57:07] This is the Senate of Virginia, Richmond, Virginia.

